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TITLE 6—AGRICULTURAL CREDIT

Chapter IV—Commodity Stabilization Service and Commodity Credit Corporation, Department of Agriculture.

Subchapter B—Loans, Purchases, and Other Operations

[1954 C. C. C. Grain Price Support Bulletin 1, Supp. 1, Barley]

PART 421—GRAINS AND RELATED COMMODITIES

SUBPART—1954 CROP BARLEY LOAN AND PURCHASE AGREEMENT PROGRAM

A price support program has been announced for the 1954 crop of barley. The 1954 C. C. C. Grain Price Support Bulletin 1 (19 F. R. 967), issued by the Commodity Credit Corporation and containing the regulations of a general nature with respect to price support operations for certain grains and other commodities produced in 1954 is supplemented as follows:

Sec.
421.451 Purpose.
421.452 Availability of price support.
421.453 Eligible barley.
421.454 Warehouse receipts.
421.455 Determination of quantity.
421.456 Determination of quality.
421.457 Maturity of loans.
421.458 Support rates.
421.459 Warehouse charges.
421.460 Settlement.

AUTHORITY: §§ 421.451 to 421.460 issued under sec. 4, 62 Stat. 1070, as amended; 15 U. S. C. Sup. 714b. Interpret or apply sec. 5, 62 Stat. 1072, secs. 301, 401, 63 Stat. 1053; 15 U. S. C. Sup. 714, 7 U. S. C. Sup. 1447, 1421.

§ 421.451 *Purpose.* This subpart states additional specific regulations which, together with the general regulations contained in the 1954 C. C. C. Grain Price Support Bulletin 1 (§§ 421.401 to 421.421), apply to loans and purchase agreements under the 1954 Crop Barley Price Support Program.

§ 421.452 *Availability of price support.*—(a) *Method of support.* Price support will be available through farm-storage and warehouse-storage loans and through purchase agreements.

(b) *Area.* Farm-storage and warehouse-storage loans and purchase agreements will be available wherever barley is grown in the continental United States, except that farm-storage loans will not be available in areas where the ASC State committee determines that barley cannot be safely stored on the farm.

(c) *Where to apply.* Application for price support should be made at the office of the ASC county committee which keeps the farm-program records for the farm.

(d) *When to apply.* Loans and purchase agreements will be available from the time of harvest through January 31, 1955, and the applicable documents must be signed by the producer and delivered to the county committee not later than such date.

(e) *Eligible producer.* An eligible producer shall be an individual, partnership, association, corporation, or other legal entity producing barley in 1954, as landowner, landlord, tenant, or sharecropper.

§ 421.453 *Eligible barley.* At the time the barley is placed under loan or delivered under a purchase agreement, it must meet the following requirements:

(a) The barley must have been produced in the continental United States in 1954 by an eligible producer.

(b) The beneficial interest in the barley must be in the person tendering the barley for loan or for delivery under a purchase agreement, and must always have been in him, or must have been in him and a former producer whom he succeeded before the barley was harvested.

(c) The barley must be of any class grading No. 5 or better (or No. 5 Garlicky or better) except that Class III Western Barley, shall not have a test weight of less than 40 pounds per bushel.

(d) Barley grading Tough, Weevily, Stained, Blighted, Bleached, Ergoty or Smutty shall not be eligible, except that barley represented by warehouse receipts grading "Tough" will be eligible if the warehouseman certifies on the supplemental certificate or on a statement attached to the warehouse receipt that barley grading Tough has been processed at the request of the eligible producer, and delivery will be made of eligible barley not grading Tough, and no lien for processing will be claimed by the warehouseman from Commodity Credit Corporation or any subsequent holder of said warehouse receipt.

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FEDERAL REGISTER

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CFR SUPPLEMENTS

(For use during 1954)

The following Supplements are now available:

Title 3, 1953 Supp. ($1.50)

Title 16 ($1.00)

Titles 22–23 ($1.00)

Title 24 ($0.75)

Previously announced: Title 8 ($0.35); Titles 10–13 ($0.50); Title 18 ($0.45); Title 25 ($0.45); Titles 40–42 ($0.50); Title 49: Parts 1 to 70 ($0.60); Parts 71 to 90 ($0.65); Parts 91 to 164 ($0.45); Parts 165 to end ($0.60)

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(e) If offered as security for a farm-storage loan, the barley must have been stored in the granary at least 30 days prior to its inspection for measurement, sampling, and sealing, unless otherwise approved by the ASC State committee.

§ 421.454 *Warehouse receipts.* Warehouse receipts representing barley in approved warehouse-storage to be placed under a loan or delivered under a purchase agreement, must meet the following requirements:

(a) Warehouse receipts must be issued in the name of the producer, must be properly endorsed in blank so as to vest title in the holder and must be receipts issued on a warehouse approved by CCC under the Uniform Grain Storage Agreement which indicate that the barley is insured, or must be receipts issued on warehouses operated by Eastern common carriers under tariffs approved by the Interstate Commerce Commission for which custodian agreements are in effect.

(b) (1) Each warehouse receipt or the warehouseman's supplemental certificate (in duplicate), properly identified with the warehouse receipt must show: (i) Gross weight or bushels, (ii) class, (iii) grade (including special grades), (iv) test weight, (v) dockage, and (vi) any other grading factor(s) when such factor(s) and net test weight determine the grade. The warehouse receipt or the supplemental certificate must show whether the barley arrived by rail, truck or barge. In the case of warehouse receipts issued for barley delivered by rail or barge, the grading factors on the warehouse receipts must agree with the inbound inspection certificate for the car or barge when such certificate is issued.

(2) If the warehouseman has processed the barley as provided in § 421.453 (d), the supplemental certificate must show the numerical grade and the grading factors changed because of the barley being processed. Where the grade and grading factors shown on the supplemental certificate do not agree with the warehouse receipt, the factors shown on the supplemental certificate shall take precedence.

(c) A separate warehouse receipt must be submitted for each grade and class of barley.

(d) The warehouse receipt may be subject to liens for warehouse charges only to the extent indicated in § 421.459.

(e) Warehouse receipts representing barley which has been shipped by rail or water from a country shipping point to a designated terminal point or shipped by rail or water from a country shipping point and stored in transit to a designated terminal point, must be accompanied by registered freight bills, or by a certificate containing similar information in a form prescribed by the ASC commodity office which shall be signed by the warehouseman and which may be a part of the supplemental certificate.

§ 421.455 *Determination of quantity.* (a) The quantity of barley placed under farm-storage loan may be determined either by weight or by measurement. The quantity of barley placed under a warehouse-storage loan or delivered under a farm-storage loan or under a purchase agreement shall be determined by weight.

(b) When the quantity is determined by weight, a bushel shall be 48 pounds, of clean barley free of dockage. In determining the quantity of sacked barley by weight, a deduction of ¾ of a pound for each sack shall be made.

(c) When the quantity of barley is determined by measurement, a bushel shall be 1.25 cubic feet of barley testing 48 pounds per bushel. The quantity determined shall be the following percentages of the quantity determined for 48-pound barley:

For barley testing:	Percent
48 pounds or over	100
47 pounds or over, but less than 48 pounds	98
46 pounds or over, but less than 47 pounds	96
45 pounds or over, but less than 46 pounds	94
44 pounds or over, but less than 45 pounds	92
43 pounds or over, but less than 44 pounds	90
42 pounds or over, but less than 43 pounds	88
41 pounds or over, but less than 42 pounds	85
40 pounds or over, but less than 41 pounds	83
39 pounds or over, but less than 40 pounds	81
38 pounds or over, but less than 39 pounds	79
37 pounds or over, but less than 38 pounds	77
36 pounds or over, but less than 37 pounds	75
35 pounds or over, but less than 36 pounds	73

(d) The percentage of dockage shall be determined and the weight of such dockage shall be deducted from the gross weight of the barley in determining the net quantity available for loan or purchase.

§ 421.456 *Determination of quality.* The grade, class, grading factors, and all other quality factors shall be determined in accordance with the methods set forth in the Official Grain Standards of the United States for Barley, whether or not such determinations are made on the basis of an official inspection.

§ 421.457 *Maturity of loans.* Loans mature on demand but not later than April 30, 1955.

§ 421.458 *Support rates.* Basic support rates for barley placed under loan and for barley delivered under purchase agreement are set forth in this section.

(a) *Basic support rates at designated terminal markets.* (1) Basic support rates per bushel for barley of the Classes I, II, and III grading No. 2 or better, and stored in approved warehouses at the terminal markets listed below are as follows:

Terminal markets:	Rate per bushel
Albany, N. Y.	$1.46
Astoria, Oreg.	1.43
Baltimore, Md.	1.46
Chicago, Ill.	1.39
Duluth, Minn.	1.34
Galveston, Tex.	1.41
Houston, Tex.	1.41
Kansas City, Mo.	1.33
Longview, Wash.	1.43
Los Angeles, Calif.	1.40
Memphis, Tenn.	1.39
Milwaukee, Wis.	1.39
Minneapolis, Minn.	1.34
New Orleans, La.	1.41
New York, N. Y.	1.46
Norfolk, Va.	1.46
Oakland, Calif.	1.40
Omaha, Nebr.	1.33
Philadelphia, Pa.	1.46
Portland, Oreg.	1.43
Saint Joseph, Mo.	1.33
Saint Louis, Mo.	1.39
San Francisco, Calif.	1.40
Seattle, Wash.	1.43
Sioux City, Iowa	1.33
Superior, Wis.	1.34
Tacoma, Wash.	1.43
Vancouver, Wash.	1.43

(2) Barley eligible for loan or purchase at the support rates shown in the above schedule must have been shipped on a domestic interstate freight rate basis. On any barley shipped at other than the domestic interstate freight rate, the support rate at the designated terminal market shall be reduced by the difference between the rate of the freight paid (plus tax) and the domestic interstate freight rate (plus tax).

(3) The support rates established for designated terminal markets apply to barley which has been shipped by rail or water from a country shipping point to one of the designated terminal markets, as evidenced by paid freight bills duly registered for transit privileges: *Provided*, That in the event the amount of paid-in freight is insufficient to guarantee the minimum proportional domestic interstate freight rate from the terminal market, there shall be deducted from the applicable terminal support rate the difference between the amount of freight actually paid in and the amount required to be paid in to guarantee outbound movement at the minimum proportional domestic interstate freight rate.

(4) When shipped by rail or water and stored at any designated terminal market, barley for which neither registered freight bills nor registered freight certificates are presented to guarantee outbound movement at the minimum proportional domestic interstate freight rate, shall have a support rate equal to the terminal rate minus 7 cents per bushel.

(5) When received by truck and stored at any designated terminal market, the support rate shall be the terminal rate minus 10½ cents per bushel.

(b) *Support rates for barley in approved warehouse-storage at other than designated terminal markets.* (1) The support rate for barley stored in approved warehouses (other than those situated in the designated terminal markets) which is shipped by rail or water, shall be determined by deducting from the appropriate designated terminal market rate on amount equal to the transit balance, if any (plus tax) of the through freight rate from point of origin for such barley to such terminal market: *Provided*, That on any barley shipped at other than the domestic interstate freight rate, the support rate shall be further reduced by the difference between the rate of the freight paid (plus tax) and the domestic interstate freight rate (plus tax) from the point of origin of such barley to the point of storage: *And provided further*, That in the case of barley stored at any railroad transit point, taking a penalty by reason of out-of-line movement, or for any other reason, to the appropriate designated market, there shall be added to such transit balance an amount equal to any out-of-line costs or other costs incurred in storing barley in such position.

(2) The warehouse receipts must be accompanied by the original paid freight bills or certificates of the warehouseman and other required documents as set forth in § 421.454.

(c) *Basic county support rates.* (1) The following basic county support rates per bushel are established for barley of the Classes I, II, and III grading No. 2 or better. Both farm-storage and country warehouse-storage loans will be based on the support rate established for the county in which the barley is stored: If two or more approved warehouses are located at the same or adjoining towns, villages, or cities having the same domestic interstate freight rate, such towns, villages, or cities shall be deemed to constitute one shipping point, and the same support rate shall apply even though such warehouses are not all located in the same county. Such support rate shall be the highest support rate of the counties involved.

Alabama	
County	*Rate per bushel*
All counties	$1.22

ARIZONA

County	Rate per bushel	County	Rate per bushel
Apache	$0.87	Mohave	$0.95
Cochise	1.00	Navajo	.87
Coconino	.91	Pima	1.12
Gila	.84	Pinal	1.17
Graham	.97	Santa Cruz	1.09
Greenlee	.91	Yavapai	.99
Maricopa	1.17	Yuma	1.18

ARKANSAS

All counties	$1.14

CALIFORNIA

County	Rate per bushel	County	Rate per bushel
Alameda	$1.30	Sacramento	$1.27
Amador	1.25	San Benito	1.27
Butte	1.23	San Bernardino	1.27
Colusa	1.24	San Diego	1.25
Contra Costa	1.30	San Joaquin	1.28
El Dorado	1.22	San Luis Obispo	1.23
Fresno	1.24	San Mateo	1.30
Glenn	1.23	Santa Barbara	1.24
Imperial	1.23	Santa Clara	1.29
Kern	1.24	Santa Cruz	1.27
Kings	1.24	Shasta	1.19
Lake	1.25	Sierra	1.13
Lassen	1.12	Siskiyou	1.15
Los Angeles	1.28	Solano	1.29
Madera	1.25	Stanislaus	1.27
Merced	1.26	Sutter	1.24
Modoc	1.12	Tehama	1.21
Monterey	1.26	Tulare	1.24
Napa	1.30	Ventura	1.29
Orange	1.27	Yolo	1.27
Placer	1.26	Yuba	1.26
Plumas	1.13		
Riverside	1.27		

COLORADO

Adams	$1.05	Kit Carson	$1.07
Alamosa	.98	La Plata	.92
Arapahoe	1.05	Larimer	1.05
Archuleta	.92	Las Animas	1.05
Baca	1.06	Lincoln	1.05
Bent	1.06	Logan	1.05
Boulder	1.05	Mesa	.92
Chaffee	.95	Moffat	.92
Cheyenne	1.07	Montrose	.92
Conejos	.97	Morgan	1.05
Costilla	.98	Otero	1.05
Crowley	1.05	Ouray	.92
Custer	1.01	Phillips	1.07
Delta	.92	Pitkin	.92
Denver	1.05	Prowers	1.07
Douglas	1.05	Pueblo	1.05
Eagle	.92	Rio Blanco	.92
Elbert	1.05	Rio Grande	.97
El Paso	1.05	Routt	.92
Fremont	1.02	Saguache	.97
Garfield	.92	San Miguel	.80
Grand	.95	Sedgwick	1.07
Gunnison	.92	Summit	.95
Huerfano	1.04	Washington	1.05
Jackson	.70	Weld	1.05
Jefferson	1.05	Yuma	1.06
Kiowa	1.06		

CONNECTICUT

All counties	$1.27

DELAWARE

All counties	$1.27

FLORIDA

All counties	$1.31

GEORGIA

All counties	$1.31

IDAHO

County	Rate per bushel	County	Rate per bushel
Ada	$1.09	Bonner	$1.15
Adams	1.07	Bonneville	1.00
Bannock	1.01	Boundary	1.13
Bear Lake	1.02	Butte	1.00
Benewah	1.16	Camas	1.03
Bingham	1.00	Canyon	1.10
Blaine	1.03	Caribou	1.02
Boise	1.09	Cassia	1.03

IDAHO—Continued

County	Rate per bushel	County	Rate per bushel
Clark	$0.98	Lewis	$1.14
Clearwater	1.16	Lincoln	1.04
Custer	1.00	Madison	1.00
Elmore	1.08	Minidoka	1.04
Franklin	1.00	Nez Perce	1.16
Fremont	1.00	Oneida	1.00
Gem	1.10	Owyhee	1.09
Gooding	1.06	Payette	1.11
Idaho	1.15	Power	1.02
Jefferson	1.00	Shoshone	1.14
Jerome	1.05	Teton	1.00
Kootenai	1.16	Twin Falls	1.02
Latah	1.16	Valley	1.08
Lemhi	.99	Washington	1.11

ILLINOIS

Adams	$1.21	Lee	$1.23
Alexander	1.23	Livingston	1.23
Bond	1.24	Logan	1.23
Boone	1.24	McHenry	1.25
Brown	1.21	McLean	1.23
Bureau	1.23	Macoupin	1.25
Calhoun	1.23	Madison	1.25
Carroll	1.22	Marion	1.23
Cass	1.23	Marshall	1.23
Champaign	1.23	Mason	1.23
Christian	1.23	Massac	1.22
Clay	1.23	Mercer	1.21
Clinton	1.25	Monroe	1.24
Cook	1.26	Montgomery	1.23
Crawford	1.22	Morgan	1.23
Cumberland	1.23	Moultrie	1.23
De Kalb	1.25	Ogle	1.23
De Witt	1.23	Peoria	1.23
Douglas	1.23	Perry	1.23
Du Page	1.26	Pike	1.22
Edgar	1.23	Pope	1.22
Edwards	1.23	Pulaski	1.23
Effingham	1.23	Putnam	1.23
Fayette	1.23	Randolph	1.23
Ford	1.23	Richland	1.22
Franklin	1.23	Rock Island	1.21
Fulton	1.22	Saint Clair	1.25
Gallatin	1.19	Saline	1.20
Greene	1.24	Sangamon	1.23
Grundy	1.24	Schuyler	1.22
Hamilton	1.22	Scott	1.23
Hancock	1.20	Shelby	1.23
Henry	1.22	Stark	1.23
Iroquois	1.24	Stephenson	1.22
Jackson	1.23	Tazewell	1.23
Jasper	1.22	Union	1.23
Jefferson	1.23	Vermilion	1.23
Jersey	1.25	Wabash	1.21
Jo Daviess	1.22	Warren	1.21
Johnson	1.18	Washington	1.23
Kane	1.25	Wayne	1.21
Kankakee	1.25	White	1.21
Kendall	1.25	Whiteside	1.22
Knox	1.22	Will	1.26
Lake	1.26	Williamson	1.23
La Salle	1.24	Winnebago	1.22
Lawrence	1.22		

INDIANA

Adams	$1.19	Hamilton	$1.21
Allen	1.20	Hancock	1.19
Bartholomew	1.18	Harrison	1.15
Benton	1.23	Hendricks	1.20
Boone	1.20	Henry	1.20
Carroll	1.23	Huntington	1.20
Cass	1.22	Jackson	1.19
Clark	1.19	Jasper	1.26
Clay	1.24	Jefferson	1.22
Crawford	1.16	Jennings	1.19
Daviess	1.19	Johnson	1.20
Dearborn	1.16	Knox	1.22
De Kalb	1.20	Kosciusko	1.21
Delaware	1.19	Lagrange	1.20
Dubois	1.16	Lake	1.26
Elkhart	1.21	La Porte	1.24
Fayette	1.18	Lawrence	1.21
Floyd	1.22	Madison	1.20
Franklin	1.17	Marion	1.20
Fulton	1.22	Marshall	1.22
Gibson	1.21	Martin	1.17
Grant	1.20	Miami	1.21
Greene	1.21	Monroe	1.23

INDIANA—Continued

County	Rate per bushel	County	Rate per bushel
Montgomery	$1.22	Shelby	$1.18
Morgan	1.23	Spencer	1.12
Noble	1.20	Starke	1.25
Ohio	1.16	Steuben	1.20
Orange	1.22	Sullivan	1.24
Owen	1.22	Switzerland	1.16
Parke	1.20	Tippecanoe	1.23
Perry	1.12	Tipton	1.21
Pike	1.17	Union	1.18
Porter	1.26	Vanderburgh	1.24
Posey	1.24	Vermillion	1.25
Pulaski	1.25	Wabash	1.21
Putnam	1.23	Warrick	1.15
Randolph	1.20	Washington	1.22
Ripley	1.16	Wayne	1.20
Rush	1.18	Wells	1.19
Saint Joseph	1.23	White	1.25
Scott	1.22	Whitley	1.21

IOWA

Adair	$1.17	Jefferson	$1.18
Adams	1.18	Johnson	1.19
Allamakee	1.17	Jones	1.20
Appanoose	1.18	Keokuk	1.17
Audubon	1.18	Kossuth	1.15
Benton	1.19	Lee	1.20
Black Hawk	1.17	Linn	1.19
Boone	1.16	Louisa	1.20
Bremer	1.17	Lucas	1.16
Buchanan	1.18	Lyon	1.15
Buena Vista	1.15	Madison	1.15
Butler	1.16	Mahaska	1.17
Calhoun	1.16	Marion	1.17
Carroll	1.18	Marshall	1.17
Cass	1.17	Mills	1.20
Cedar	1.20	Mitchell	1.16
Cerro Gordo	1.16	Monona	1.19
Cherokee	1.16	Monroe	1.18
Chickasaw	1.16	Montgomery	1.19
Clarke	1.16	Muscatine	1.20
Clay	1.15	O'Brien	1.16
Clayton	1.18	Osceola	1.15
Clinton	1.21	Page	1.19
Crawford	1.18	Palo Alto	1.15
Dallas	1.16	Plymouth	1.17
Davis	1.19	Pocahontas	1.15
Decatur	1.16	Polk	1.16
Delaware	1.19	Pottawattamie	1.20
Des Moines	1.20	Poweshiek	1.17
Dickinson	1.15	Ringgold	1.15
Dubuque	1.20	Sac	1.16
Emmet	1.16	Scott	1.21
Fayette	1.18	Shelby	1.19
Floyd	1.16	Sioux	1.16
Franklin	1.16	Story	1.16
Fremont	1.20	Tama	1.17
Greene	1.16	Taylor	1.17
Grundy	1.17	Union	1.17
Guthrie	1.17	Van Buren	1.19
Hamilton	1.16	Wapello	1.18
Hancock	1.16	Warren	1.16
Hardin	1.16	Washington	1.19
Harrison	1.20	Wayne	1.17
Henry	1.19	Webster	1.15
Howard	1.16	Winnebago	1.16
Humboldt	1.15	Winneshiek	1.17
Ida	1.17	Woodbury	1.17
Iowa	1.18	Worth	1.16
Jackson	1.21	Wright	1.15
Jasper	1.16		

KANSAS

Allen	$1.17	Comanche	$1.10
Anderson	1.17	Cowley	1.13
Atchison	1.19	Crawford	1.17
Barber	1.12	Decatur	1.10
Barton	1.12	Dickinson	1.13
Bourbon	1.17	Doniphan	1.17
Brown	1.17	Douglas	1.19
Butler	1.13	Edwards	1.12
Chase	1.15	Elk	1.15
Chautauqua	1.15	Ellis	1.12
Cherokee	1.16	Ellsworth	1.13
Cheyenne	1.08	Finney	1.09
Clark	1.09	Ford	1.11
Clay	1.14	Franklin	1.19
Cloud	1.14	Geary	1.15
Coffey	1.17	Gove	1.10

KANSAS—Continued

County	Rate per bushel	County	Rate per bushel
Graham	$1.11	Osage	$1.17
Grant	1.08	Osborne	1.13
Gray	1.10	Ottawa	1.13
Greeley	1.08	Pawnee	1.12
Greenwood	1.15	Phillips	1.12
Hamilton	1.08	Pottawatomie	1.17
Harper	1.13	Pratt	1.12
Harvey	1.13	Rawlins	1.09
Haskell	1.09	Reno	1.13
Hodgeman	1.11	Republic	1.14
Jackson	1.17	Rice	1.13
Jefferson	1.19	Riley	1.16
Jewell	1.13	Rooks	1.12
Johnson	1.20	Rush	1.12
Kearny	1.08	Russell	1.12
Kingman	1.13	Saline	1.13
Kiowa	1.12	Scott	1.09
Labette	1.16	Sedgwick	1.13
Lane	1.10	Seward	1.08
Leavenworth	1.20	Shawnee	1.17
Lincoln	1.13	Sheridan	1.10
Linn	1.17	Sherman	1.08
Logan	1.09	Smith	1.13
Lyon	1.16	Stafford	1.12
McPherson	1.13	Stanton	1.08
Marion	1.13	Stevens	1.08
Marshall	1.16	Sumner	1.13
Meade	1.09	Thomas	1.09
Miami	1.19	Trego	1.11
Mitchell	1.13	Wabaunsee	1.16
Montgomery	1.16	Wallace	1.08
Morris	1.15	Washington	1.15
Morton	1.06	Wichita	1.08
Nemaha	1.17	Wilson	1.16
Neosho	1.17	Woodson	1.17
Ness	1.11	Wyandotte	1.21
Norton	1.12		

KENTUCKY

All counties $1.20

LOUISIANA

All counties $1.13

MAINE

All counties $1.27

MARYLAND

All counties $1.27

MASSACHUSETTS

All counties $1.27

MICHIGAN

County	Rate per bushel	County	Rate per bushel
Alcona	$1.09	Iosco	$1.10
Alger	1.13	Iron	1.14
Allegan	1.19	Isabella	1.16
Alpena	1.09	Jackson	1.19
Antrim	1.10	Kalamazoo	1.21
Arenac	1.13	Kalhaska	1.10
Baraga	1.13	Kent	1.18
Barry	1.19	Lake	1.14
Bay	1.17	Lapeer	1.18
Benzie	1.17	Leelanau	1.10
Berrien	1.21	Lenawee	1.18
Branch	1.19	Livingston	1.19
Calhoun	1.19	Luce	1.10
Cass	1.21	Mackinac	1.10
Charlevoix	1.09	Macomb	1.18
Cheboygan	1.08	Manistee	1.14
Chippewa	1.10	Marquette	1.13
Clare	1.17	Mason	1.14
Clinton	1.18	Mecosta	1.14
Crawford	1.10	Menominee	1.16
Delta	1.15	Midland	1.17
Dickinson	1.15	Missaukee	1.14
Eaton	1.18	Monroe	1.19
Emmet	1.09	Montcalm	1.17
Genesee	1.18	Montmorency	1.08
Gladwin	1.15	Muskegon	1.16
Gogebic	1.14	Newaygo	1.16
Grand Traverse	1.12	Oakland	1.18
Gratiot	1.18	Oceana	1.14
Hillsdale	1.19	Ogemaw	1.15
Houghton	1.11	Ontonagon	1.12
Huron	1.14	Osceola	1.13
Ingham	1.19	Oscoda	1.15
Ionia	1.18	Otsego	1.09
		Ottawa	1.19

MICHIGAN—Continued

County	Rate per bushel	County	Rate per bushel
Presque Isle	$1.08	Shiawassee	$1.18
Roscommon	1.15	Tuscola	1.15
Saginaw	1.18	Van Buren	1.20
Saint Clair	1.17	Washtenaw	1.18
Saint Joseph	1.20	Wayne	1.19
Sanilac	1.16	Wexford	1.11
Schoolcraft	1.10		

MINNESOTA

Aitkin	$1.19	Martin	$1.16
Anoka	1.21	Meeker	1.20
Becker	1.15	Mille Lacs	1.20
Beltrami	1.15	Morrison	1.18
Benton	1.19	Mower	1.17
Big Stone	1.15	Murray	1.16
Blue Earth	1.18	Nicollet	1.19
Brown	1.18	Nobles	1.15
Carlton	1.20	Norman	1.14
Carver	1.21	Olmsted	1.18
Cass	1.17	Otter Tail	1.16
Chippewa	1.17	Pennington	1.13
Chisago	1.20	Pine	1.19
Clay	1.14	Pipestone	1.15
Clearwater	1.15	Polk	1.13
Cottonwood	1.17	Pope	1.17
Crow Wing	1.18	Ramsey	1.22
Dakota	1.21	Red Lake	1.14
Dodge	1.18	Redwood	1.17
Douglas	1.17	Renville	1.18
Faribault	1.16	Rice	1.20
Fillmore	1.16	Rock	1.14
Freeborn	1.18	Roseau	1.12
Goodhue	1.19	Saint Louis	1.18
Grant	1.16	Scott	1.21
Hennepin	1.21	Sherburne	1.20
Houston	1.16	Sibley	1.19
Hubbard	1.16	Stearns	1.19
Isanti	1.20	Steele	1.18
Itasca	1.18	Stevens	1.17
Jackson	1.16	Swift	1.17
Kanabec	1.19	Todd	1.17
Kandiyohi	1.19	Traverse	1.15
Kittson	1.11	Wabasha	1.19
Koochiching	1.12	Wadena	1.17
Lac qui Parle	1.16	Waseca	1.18
Lake of the Woods	1.13	Washington	1.21
Le Sueur	1.20	Watonwan	1.17
Lincoln	1.16	Wilkin	1.15
Lyon	1.16	Winona	1.18
McLeod	1.20	Wright	1.20
Mahnomen	1.14	Yellow Medicine	1.17
Marshall	1.12		

MISSISSIPPI

All counties $1.22

MISSOURI

County	Rate per bushel	County	Rate per bushel
Adair	$1.20	De Kalb	$1.18
Andrew	1.18	Dent	1.21
Audrain	1.22	Douglas	1.15
Barry	1.15	Dunklin	1.18
Barton	1.17	Franklin	1.25
Bates	1.19	Gasconade	1.23
Benton	1.18	Gentry	1.17
Bollinger	1.22	Greene	1.17
Boone	1.21	Harrison	1.16
Buchanan	1.19	Henry	1.19
Butler	1.20	Hickory	1.17
Caldwell	1.18	Holt	1.17
Callaway	1.22	Howard	1.21
Camden	1.19	Howell	1.14
Cape Girardeau	1.21	Iron	1.23
Carroll	1.18	Jackson	1.20
Carter	1.14	Jasper	1.16
Cass	1.19	Jefferson	1.26
Cedar	1.19	Johnson	1.18
Chariton	1.20	Knox	1.20
Christian	1.15	Laclede	1.19
Clay	1.20	Lafayette	1.19
Cole	1.21	Lawrence	1.15
Cooper	1.20	Lincoln	1.25
Crawford	1.23	Linn	1.19
Dade	1.16	Livingston	1.18
Dallas	1.17	McDonald	1.15
Daviess	1.18	Macon	1.20

MISSOURI—Continued

County	Rate per bushel	County	Rate per bushel
Madison	$1.22	Randolph	$1.21
Maries	1.22	Ray	1.19
Miller	1.20	Reynolds	1.20
Mississippi	1.19	Ripley	1.19
Moniteau	1.20	Saint Charles	1.27
Monroe	1.21	Saint Clair	1.18
Montgomery	1.23	Saint Francois	1.23
Morgan	1.19	Ste. Genevieve	1.23
New Madrid	1.19	Saint Louis	1.27
Newton	1.15	Saline	1.19
Nodaway	1.17	Scotland	1.20
Oregon	1.14	Scott	1.20
Osage	1.21	Shannon	1.14
Ozark	1.15	Stoddard	1.20
Pemiscot	1.19	Stone	1.14
Perry	1.23	Taney	1.14
Pettis	1.18	Texas	1.14
Phelps	1.22	Vernon	1.17
Pike	1.22	Warren	1.25
Platte	1.20	Washington	1.23
Polk	1.16	Wayne	1.21
Pulaski	1.20	Webster	1.17
Putnam	1.15	Worth	1.16
Ralls	1.22	Wright	1.15

MONTANA

Beaverhead	$0.96	Madison	$1.04
Big Horn	.94	Meagher	1.04
Blaine	.99	Mineral	1.07
Broadwater	1.04	Missoula	1.06
Carbon	1.01	Musselshell	1.03
Carter	1.01	Park	1.04
Cascade	1.04	Petroleum	1.04
Chouteau	1.04	Phillips	.99
Custer	1.00	Pondera	1.04
Daniels	.98	Powder River	.99
Dawson	1.01	Powell	1.04
Deer Lodge	1.04	Prairie	1.00
Fallon	1.01	Ravalli	1.05
Fergus	1.04	Richland	1.01
Flathead	1.07	Roosevelt	1.01
Gallatin	1.04	Rosebud	.97
Garfield	.99	Sanders	1.08
Glacier	1.05	Sheridan	1.00
Golden Valley	1.03	Silver Bow	1.04
Granite	1.05	Stillwater	1.03
Hill	1.04	Sweet Grass	1.03
Jefferson	1.04	Teton	1.04
Judith Basin	1.04	Toole	1.04
Lake	1.07	Treasure	.99
Lewis and Clark	1.04	Valley	.98
Liberty	1.04	Wheatland	1.04
Lincoln	1.09	Wibaux	1.02
McCone	.99	Yellowstone	1.03

NEBRASKA

Adams	$1.15	Frontier	$1.12
Antelope	1.15	Furnas	1.12
Arthur	1.09	Gage	1.18
Banner	1.05	Garden	1.08
Blaine	1.12	Garfield	1.14
Boone	1.17	Gosper	1.13
Box Butte	1.08	Grant	1.09
Boyd	1.13	Greeley	1.16
Brown	1.11	Hall	1.16
Buffalo	1.15	Hamilton	1.16
Burt	1.19	Harlan	1.13
Butler	1.19	Hayes	1.09
Cass	1.20	Hitchcock	1.10
Cedar	1.15	Holt	1.14
Chase	1.09	Hooker	1.10
Cherry	1.10	Howard	1.16
Cheyenne	1.05	Jefferson	1.17
Clay	1.15	Johnson	1.18
Colfax	1.19	Kearney	1.14
Cuming	1.19	Keith	1.09
Custer	1.13	Keya Paha	1.12
Dakota	1.17	Kimball	1.05
Dawes	1.06	Knox	1.14
Dawson	1.13	Lancaster	1.19
Deuel	1.08	Lincoln	1.11
Dixon	1.17	Logan	1.12
Dodge	1.20	Loup	1.14
Douglas	1.20	McPherson	1.10
Dundy	1.09	Madison	1.17
Fillmore	1.16	Merrick	1.17
Franklin	1.14	Morrill	1.07

Nebraska—Continued

County	Rate per bushel	County	Rate per bushel
Nance	$1.17	Scotts Bluff	$1.06
Nemaha	1.18	Seward	1.19
Nuckolls	1.15	Sheridan	1.08
Otoe	1.19	Sherman	1.15
Pawnee	1.17	Sioux	1.05
Perkins	1.09	Stanton	1.17
Phelps	1.13	Thayer	1.16
Pierce	1.16	Thomas	1.11
Platte	1.18	Thurston	1.18
Polk	1.17	Valley	1.14
Redwillow	1.11	Washington	1.20
Richardson	1.17	Wayne	1.16
Rock	1.12	Webster	1.14
Saline	1.18	Wheeler	1.16
Sarpy	1.20	York	1.17
Saunders	1.20		

Nevada

All counties	$1.11

New Hampshire

All counties	$1.27

New Jersey

All counties	$1.27

New Mexico

County	Rate per bushel	County	Rate per bushel
Bernalillo	$0.98	Mora	$0.98
Catron	.92	Otero	1.00
Chaves	1.06	Quay	1.07
Colfax	1.00	Rio Arriba	.92
Curry	1.08	Roosevelt	1.07
De Baca	1.05	Sandoval	.98
Dona Ana	.98	San Juan	.77
Eddy	1.05	San Miguel	.98
Grant	.88	Santa Fe	.96
Guadalupe	1.02	Sierra	.98
Harding	1.04	Socorro	.98
Hidalgo	.88	Taos	.97
Lea	1.08	Torrance	1.00
Lincoln	1.00	Union	1.01
Luna	.88	Valencia	.95
McKinley	.88		

New York

All counties	$1.27

North Carolina

All counties	$1.27

North Dakota

County	Rate per bushel	County	Rate per bushel
Adams	$1.05	McLean	$1.07
Barnes	1.12	Mercer	1.06
Benson	1.09	Morton	1.07
Billings	1.05	Mountrail	1.06
Bottineau	1.06	Nelson	1.11
Bowman	1.04	Oliver	1.07
Burke	1.06	Pembina	1.10
Burleigh	1.09	Pierce	1.09
Cass	1.13	Ramsey	1.10
Cavalier	1.09	Ransom	1.12
Dickey	1.12	Renville	1.06
Divide	1.04	Richland	1.14
Dunn	1.05	Rolette	1.08
Eddy	1.10	Sargent	1.13
Emmons	1.08	Sheridan	1.09
Foster	1.11	Sioux	1.07
Golden Valley	1.03	Slope	1.03
Grand Forks	1.12	Stark	1.06
Grant	1.06	Steele	1.12
Griggs	1.12	Stutsman	1.11
Hettinger	1.06	Towner	1.09
Kidder	1.10	Traill	1.12
La Moure	1.11	Walsh	1.11
Logan	1.10	Ward	1.06
McHenry	1.08	Wells	1.10
McIntosh	1.09	Williams	1.05
McKenzie	1.02		

Ohio

County	Rate per bushel	County	Rate per bushel
Adams	$1.18	Clark	$1.18
Allen	1.19	Clermont	1.18
Ashland	1.20	Clinton	1.18
Ashtabula	1.22	Columbiana	1.21
Athens	1.19	Coshocton	1.20
Auglaize	1.19	Crawford	1.19
Belmont	1.20	Cuyahoga	1.20
Brown	1.18	Darke	1.19
Butler	1.18	Defiance	1.19
Carroll	1.20	Delaware	1.19
Champaign	1.18	Erie	1.19

Ohio—Continued

County	Rate per bushel	County	Rate per bushel
Fairfield	$1.19	Miami	$1.19
Fayette	1.18	Montgomery	1.18
Franklin	1.19	Morgan	1.20
Fulton	1.18	Morrow	1.19
Gallia	1.18	Muskingum	1.20
Geauga	1.22	Noble	1.20
Greene	1.18	Ottawa	1.19
Guernsey	1.20	Paulding	1.19
Hamilton	1.18	Perry	1.19
Hancock	1.19	Pickaway	1.19
Hardin	1.19	Portage	1.20
Harrison	1.20	Preble	1.17
Henry	1.19	Putnam	1.19
Highland	1.18	Richland	1.20
Hocking	1.19	Ross	1.18
Holmes	1.20	Sandusky	1.19
Huron	1.19	Scioto	1.18
Jackson	1.18	Seneca	1.19
Jefferson	1.21	Shelby	1.18
Knox	1.20	Stark	1.20
Lake	1.21	Summit	1.20
Lawrence	1.18	Trumbull	1.22
Licking	1.20	Tuscarawas	1.20
Logan	1.18	Union	1.19
Lorain	1.20	Van Wert	1.19
Lucas	1.19	Vinton	1.19
Madison	1.18	Warren	1.18
Mahoning	1.22	Washington	1.20
Marion	1.19	Wayne	1.20
Medina	1.20	Williams	1.19
Meigs	1.18	Wood	1.19
Mercer	1.19	Wyandot	1.19

Oklahoma

County	Rate per bushel	County	Rate per bushel
Adair	$1.12	Le Flore	$1.08
Alfalfa	1.11	Lincoln	1.08
Atoka	1.06	Logan	1.09
Beaver	1.06	Love	1.06
Beckham	1.06	McClain	1.06
Blaine	1.07	McIntosh	1.11
Bryan	1.06	Major	1.08
Caddo	1.06	Marshall	1.06
Canadian	1.06	Mayes	1.14
Carter	1.06	Murray	1.06
Cherokee	1.13	Muskogee	1.12
Cimarron	1.05	Noble	1.11
Cleveland	1.06	Nowata	1.16
Coal	1.06	Okfuskee	1.09
Comanche	1.06	Oklahoma	1.06
Cotton	1.06	Okmulgee	1.12
Craig	1.16	Osage	1.13
Custer	1.06	Ottawa	1.15
Delaware	1.15	Pawnee	1.12
Dewey	1.06	Payne	1.09
Ellis	1.06	Pittsburg	1.08
Garfield	1.11	Pontotoc	1.06
Garvin	1.06	Pottawatomie	1.06
Grady	1.06	Roger Mills	1.06
Grant	1.12	Rogers	1.14
Greer	1.06	Sequoyah	1.11
Harmon	1.06	Stephens	1.06
Harper	1.08	Texas	1.05
Haskell	1.10	Tillman	1.06
Hughes	1.09	Tulsa	1.14
Jackson	1.06	Wagoner	1.13
Jefferson	1.06	Washington	1.15
Johnston	1.06	Washita	1.06
Kay	1.12	Woods	1.11
Kingfisher	1.08	Woodward	1.07
Kiowa	1.06		

Oregon

County	Rate per bushel	County	Rate per bushel
Baker	$1.15	Lake	$1.09
Benton	1.28	Lane	1.26
Clackamas	1.30	Linn	1.28
Clatsop	1.27	Malheur	1.10
Columbia	1.29	Marion	1.30
Coos	1.21	Morrow	1.27
Crook	1.27	Multnomah	1.32
Deschutes	1.27	Polk	1.29
Douglas	1.22	Sherman	1.29
Gilliam	1.28	Umatilla	1.22
Grant	1.27	Union	1.15
Harney	1.06	Wallowa	1.15
Hood River	1.31	Wasco	1.30
Jackson	1.17	Washington	1.32
Jefferson	1.28	Wheeler	1.27
Josephine	1.18	Yamhill	1.31
Klamath	1.17		

Pennsylvania

All counties	$1.27

Rhode Island

All counties	$1.27

South Carolina

All counties	$1.27

South Dakota

County	Rate per bushel	County	Rate per bushel
Aurora	$1.12	Jackson	$1.05
Beadle	1.13	Jerauld	1.12
Bennett	1.08	Jones	1.07
Bon Homme	1.14	Kingsbury	1.14
Brookings	1.15	Lake	1.14
Brown	1.13	Lawrence	1.03
Brule	1.12	Lincoln	1.15
Buffalo	1.12	Lyman	1.09
Butte	1.03	McCook	1.14
Campbell	1.09	McPherson	1.10
Charles Mix	1.13	Marshall	1.13
Clark	1.14	Meade	1.03
Clay	1.16	Mellette	1.10
Codington	1.14	Miner	1.13
Corson	1.07	Minnehaha	1.14
Custer	1.05	Moody	1.14
Davison	1.13	Pennington	1.04
Day	1.13	Perkins	1.05
Deuel	1.15	Potter	1.10
Dewey	1.07	Roberts	1.14
Douglas	1.13	Sanborn	1.12
Edmunds	1.11	Shannon	1.08
Fall River	1.05	Spink	1.13
Faulk	1.12	Stanley	1.09
Grant	1.15	Sully	1.09
Gregory	1.13	Todd	1.10
Haakon	1.06	Tripp	1.11
Hamlin	1.14	Turner	1.15
Hand	1.12	Union	1.17
Hanson	1.13	Walworth	1.09
Harding	1.05	Washabaugh	1.05
Hughes	1.10	Yankton	1.15
Hutchinson	1.14	Ziebach	1.05
Hyde	1.11		

Tennessee

All counties	$1.22

Texas

County	Rate per bushel	County	Rate per bushel
Archer	$1.10	Denton	$1.15
Armstrong	1.10	De Witt	1.23
Atascosa	1.16	Dickens	1.10
Bailey	1.10	Donley	1.10
Bamdera	1.15	Eastland	1.14
Baylor	1.10	Edwards	1.09
Bee	1.19	Ellis	1.17
Bell	1.21	El Paso	1.04
Bexar	1.17	Erath	1.14
Blanco	1.20	Falls	1.22
Borden	1.10	Fannin	1.14
Bosque	1.17	Fayette	1.26
Briscoe	1.10	Fisher	1.10
Brown	1.14	Floyd	1.10
Burleson	1.26	Foard	1.10
Burnet	1.17	Gaines	1.10
Callahan	1.11	Gillespie	1.14
Cameron	1.08	Goliad	1.22
Carson	1.10	Gonzales	1.23
Castro	1.10	Gray	1.10
Childress	1.10	Grayson	1.14
Clay	1.11	Gregg	1.17
Cochran	1.10	Guadalupe	1.20
Coke	1.10	Hale	1.10
Coleman	1.14	Hall	1.10
Collin	1.15	Hamilton	1.16
Collingsworth	1.10	Hansford	1.07
Comal	1.20	Hardeman	1.10
Comanche	1.14	Harrison	1.16
Concho	1.13	Hartley	1.08
Cooke	1.14	Haskell	1.10
Coryell	1.19	Hays	1.21
Cottle	1.10	Hemphill	1.08
Crosby	1.10	Hidalgo	1.09
Dallam	1.06	Hill	1.17
Dallas	1.16	Hockley	1.10
Dawson	1.10	Hood	1.15
Deaf Smith	1.10	Houston	1.25
Delta	1.14	Howard	1.10

TEXAS—Continued

County	Rate per bushel	County	Rate per bushel
Hunt	$1.15	Pecos	$1.05
Hutchinson	1.08	Polk	1.28
Irion	1.08	Potter	1.10
Jack	1.13	Presidio	1.04
Jim Wells	1.16	Randall	1.10
Johnson	1.16	Reeves	1.05
Jones	1.10	Roberts	1.08
Karnes	1.20	Rockwall	1.16
Kaufman	1.16	Runnels	1.10
Kendall	1.14	San Saba	1.16
Kent	1.10	Schleicher	1.08
Kerr	1.14	Scurry	1.10
Kimble	1.14	Shackelford	1.10
Knox	1.10	Sherman	1.07
Lamar	1.13	Somervell	1.15
Lamb	1.10	Stephens	1.10
Lampasas	1.16	Sterling	1.08
Limestone	1.22	Stonewall	1.10
Lipscomb	1.08	Sutton	1.08
Live Oak	1.16	Swisher	1.10
Lubbock	1.10	Tarrant	1.16
Lynn	1.10	Taylor	1.10
McCulloch	1.14	Terry	1.10
McLennan	1.20	Throckmorton	1.10
Martin	1.09	Tom Green	1.10
Mason	1.14	Travis	1.21
Medina	1.17	Uvalde	1.12
Menard	1.13	Val Verde	1.05
Midland	1.08	Van Zandt	1.16
Milam	1.24	Victoria	1.24
Mills	1.16	Ward	1.07
Mitchell	1.10	Wharton	1.28
Montague	1.11	Wheeler	1.10
Moore	1.08	Wichita	1.10
Motley	1.10	Wilbarger	1.10
Navarro	1.19	Willacy	1.10
Nolan	1.10	Williamson	1.22
Ochiltree	1.08	Wilson	1.19
Oldham	1.10	Wise	1.14
Palo Pinto	1.14	Yoakum	1.10
Parker	1.15	Young	1.10
Parmer	1.10		

UTAH

All counties	$1.04

VERMONT

All counties	$1.27

VIRGINIA

All counties	$1.27

WASHINGTON

County	Rate per bushel	County	Rate per bushel
Adams	$1.17	Klickitat	$1.29
Asotin	1.16	Lewis	1.27
Benton	1.23	Lincoln	1.17
Chelan	1.16	Mason	1.23
Clallam	1.08	Okanogan	1.13
Clark	1.32	Pend Oreille	1.15
Columbia	1.21	Pierce	1.24
Cowlitz	1.30	San Juan	1.20
Douglas	1.15	Skagit	1.20
Ferry	1.11	Skamania	1.31
Franklin	1.20	Snohomish	1.21
Garfield	1.21	Spokane	1.17
Grant	1.17	Stevens	1.14
Grays Harbor	1.25	Thurston	1.25
Island	1.21	Walla Walla	1.22
Jefferson	1.08	Whatcom	1.19
King	1.23	Whitman	1.17
Kittitas	1.22	Yakima	1.22

WEST VIRGINIA

All counties	$1.24

WISCONSIN

County	Rate per bushel	County	Rate per bushel
Adams	$1.19	Columbia	$1.20
Ashland	1.16	Crawford	1.18
Barron	1.17	Dane	1.21
Bayfield	1.17	Dodge	1.21
Brown	1.19	Door	1.17
Buffalo	1.18	Douglas	1.20
Burnett	1.19	Dunn	1.18
Calumet	1.20	Eau Claire	1.18
Chippewa	1.17	Florence	1.16
Clark	1.16	Fond du Lac	1.21

WISCONSIN—Continued

County	Rate per bushel	County	Rate per bushel
Forest	$1.16	Pierce	$1.20
Grant	1.19	Polk	1.20
Green	1.21	Portage	1.18
Greenlake	1.20	Price	1.15
Iowa	1.19	Racine	1.26
Iron	1.15	Richland	1.19
Jackson	1.18	Rock	1.22
Jefferson	1.22	Rusk	1.17
Juneau	1.19	Saint Croix	1.20
Kenosha	1.26	Sauk	1.20
Kewaunee	1.18	Sawyer	1.17
La Crosse	1.18	Shawano	1.18
Lafayette	1.20	Sheboygan	1.21
Langlade	1.17	Taylor	1.15
Lincoln	1.16	Trempealeau	1.16
Manitowoc	1.20	Vernon	1.18
Marathon	1.18	Vilas	1.14
Marinette	1.16	Walworth	1.23
Marquette	1.19	Washburn	1.18
Milwaukee	1.26	Washington	1.22
Monroe	1.19	Waukesha	1.22
Oconto	1.18	Waupaca	1.19
Oneida	1.16	Waushara	1.19
Outagamie	1.20	Winnebago	1.20
Ozaukee	1.22	Wood	1.18
Pepin	1.18		

WYOMING

County	Rate per bushel	County	Rate per bushel
Albany	$0.94	Natrona	$0.95
Big Horn	.90	Niobrara	1.03
Campbell	.99	Park	.90
Carbon	.92	Platte	1.03
Converse	.99	Sheridan	.97
Crook	1.00	Sublette	.92
Fremont	.90	Sweetwater	.92
Goshen	1.05	Teton	1.00
Hot Springs	.90	Uinta	.94
Johnson	.97	Washakie	.90
Laramie	1.05	Weston	1.02
Lincoln	.92		

(2) Where the State Committee determines that State or district weed control laws affect the barley crop, the support rate will be 10 cents below the applicable county support rate set forth in the schedule in this paragraph. If upon delivery of the barley to CCC the producer supplies a certificate indicating that the barley complies with the weed control laws, the producer will be credited with the amount of the differential in determining the settlement value.

(d) *Discounts.* The discount for barley which grades No. 3 shall be 3 cents per bushel; for No. 4, 6 cents per bushel and for No. 5, 10 cents per bushel. An additional discount of 10 cents per bushel shall be applied to barley grading "Garlicky." The support rates for "mixed barley" (Class IV) shall be 2 cents per bushel less than the support rates for barley of the Class I, II and III.

§ 421.459 *Warehouse charges.* (a) Warehouse receipts and the barley represented thereby stored in approved warehouses operating under the Uniform Grain Storage Agreement may be subject to liens for warehouse handling and storage charges at not to exceed the Uniform Grain Storage Agreement rates from the date the grain is deposited in the warehouse for storage. Where the date of deposit (the date of the warehouse receipt if the date of deposit is not shown) on warehouse receipts representing barley stored in warehouses operating under the Uniform Grain Storage Agreement is on or before April 30, 1955 there shall be deducted in computing the amount of the loan or purchase price the storage charges as determined in accordance with the table of deductions for warehouse charges to be issued at a later date unless written evidence has been submitted with the warehouse receipt that all warehouse charges, except receiving and loading out charges, have been prepaid through the maturity date.

(b) Warehouse receipts and the barley represented thereby stored in approved warehouses operated by Eastern common carriers may be subject to liens for warehouse elevation (receiving and delivering) and storage charges from the date of deposit at rates approved by the Interstate Commerce Commission. There shall be deducted in computing the loan or the purchase price the amount of the approved tariff rate for storage (not including elevation), which will accumulate from the date of deposit to the program maturity date unless written evidence has been submitted with the warehouse receipt that the storage charge has been prepaid. The county committee shall request the CSS commodity office to determine the amount of such charges.

§ 421.460 *Settlement*—(a) *Settlement value.* (1) In the case of eligible barley delivered to CCC from farm storage under the loan program, settlement shall be made at the applicable support rate determined in accordance with § 421.418 (e). The support rate shall be for the grade and quality of the total quantity of barley eligible for delivery. If, upon delivery, the barley under farm-storage loan is of a grade and/or quality for which no support rate has been established, the settlement value shall be computed at the support rate established for the grade and/or quality of the barley placed under loan, less the difference, if any, at the time of delivery, between the market price for the grade and/or quality placed under loan and the market price of the barley delivered, as determined by CCC: *Provided, however,* That if such barley is sold by CCC in order to determine its market price, the settlement value shall not be less than such sales price.

(2) In the case of eligible barley delivered to CCC under purchase agreement, settlement shall be made at the applicable support rate determined in accordance with § 421.418 (e).

(b) *Storage deduction for early delivery.* Whenever farm-stored barley under loan or purchase agreement is delivered to CCC prior to April 30, 1955, a deduction for storage shall be made in accordance with the schedule of deductions for warehouse charges (§ 421.459), except that no such deduction shall be made if such early delivery is made because the loan is called solely for the convenience of CCC, or if it is determined by CCC at the time of delivery that the barley will be sold rather than stored, or if CCC requires early delivery on an area basis.

(c) *Refund of prepaid handling charges.* In case a warehouseman charges the producer for the receiving or the receiving and loading out charges on barley under loan or purchase agreement (or charges for elevation in the case of warehouses operated by Eastern common carriers), the producer shall, upon de-

livery of the barley to CCC, be reimbursed or given credit by the county office for such prepaid charges in an amount not to exceed the charges authorized under the Uniform Grain Storage Agreement (or approved tariff in the case of warehouses operated by Eastern common carriers), provided the producer furnishes to the county committee written evidence signed by the warehouseman that such charges have been paid.

(d) *Track-loading payment.* A track-loading payment of 3 cents per bushel shall be made to the producer on barley delivered to CCC on track at a country point.

Issued this 19th day of March, 1954.

[SEAL] WALTER C. BERGER,
Acting Executive Vice President,
Commodity Credit Corporation.

[F. R. Doc. 54-2068; Filed, Mar. 23, 1954; 8:49 a. m.]

[1954 C. C. C. Grain Price Support Bulletin 1, Supp. 1, Flaxseed]

PART 421—GRAINS AND RELATED COMMODITIES

SUBPART—1954-CROP FLAXSEED LOAN AND PURCHASE AGREEMENT PROGRAM

A price support program has been announced for the 1954 crop of flaxseed. The 1954 C. C. C. Grain Price Support Bulletin 1 (19 F. R. 967), issued by the Commodity Credit Corporation and containing the regulations of a general nature with respect to price support operations for certain grains and other commodities produced in 1954 is supplemented as follows:

Sec.
421.651 Purpose.
421.652 Availability of price support.
421.653 Eligible flaxseed.
421.654 Warehouse receipts.
421.655 Determination of quantity.
421.656 Determination of quality.
421.657 Maturity of loans.
421.658 Support rates.
421.659 Warehouse charges.
421.660 Settlement.

AUTHORITY: §§ 421.651 to 421.660 issued under sec. 4, 62 Stat. 1070, as amended; 15 U. S. C. Sup. 714b. Interpret or apply sec. 5, 62 Stat. 1072; secs. 301, 401, 63 Stat. 1054; 15 U. S. C. Sup. 714c, 7 U. S. C. Sup. 1447, 1421.

§ 421.651 *Purpose.* This subpart states additional specific regulations which, together with the general regulations contained in the 1954 C. C. C. Grain Price Support Bulletin 1 (§§ 421.411 to 421.421; 19 F. R. 967), apply to loans and purchase agreements under the 1954-Crop Flaxseed Price Support Program.

§ 421.652 *Availability of price support*—(a) *Method of support.* Price support will be made available through farm-storage and warehouse-storage loans and through purchase agreements.

(b) *Area.* Farm-storage and warehouse-storage loans and purchase agreements will be available wherever flaxseed is grown in the continental United States, except in Texas counties designated under the 1954-Texas Flaxseed Purchase Program (§§ 421.676 to 421.689; 19 F. R. 1105). Farm-storage loans will not be available in areas where the State committee determines that flaxseed cannot be safely stored on the farm.

(c) *Where to apply.* Application for price support should be made at the office of the county committee which keeps the farm-program records for the farm.

(d) *When to apply.* Loans and purchase agreements will be available from the time of harvest through November 1, 1954, in Arizona and California, and from the time of harvest through January 31, 1955, in all other States; the applicable documents must be signed by the producer and delivered to the county committee not later than such final dates.

(e) *Eligible producer.* An eligible producer shall be an individual, partnership, association, corporation or other legal entity producing flaxseed in 1954 as landowner, landlord, tenant, or sharecropper.

§ 421.653 *Eligible flaxseed.* At the time the flaxseed is placed under loan or delivered under a purchase agreement, it must meet the following requirements:

(a) The flaxseed must have been produced in the continental United States (excluding the Texas counties designated under the 1954-Texas Flaxseed Purchase Program) in 1954 by an eligible producer.

(b) The beneficial interest in the flaxseed must be in the producer tendering the flaxseed for loan or for delivery under a purchase agreement, and must always have been in him or must have been in him and a former producer whom he succeeded before the flaxseed was harvested.

(c) The flaxseed must grade No. 1 or No. 2.

(d) If offered as security for a farm-storage loan, the flaxseed must have been stored in the bin or granary at least 30 days prior to its inspection, measurement, sampling, and sealing unless otherwise approved by the State committee.

§ 421.654 *Warehouse receipts.* Warehouse receipts, representing flaxseed in approved warehouse storage to be placed under loan or delivered under a purchase agreement, must meet the requirements below:

(a) Warehouse receipts must be issued in the name of the producer, must be properly endorsed in blank so as to vest title in the holder, and must be receipts issued on a warehouse approved by CCC under the Uniform Grain Storage Agreement which indicate that the flaxseed is insured, or must be issued on warehouses operated by Eastern common carriers under tariffs approved by the Interstate Commerce Commission for which custodian agreements are in effect.

(b) Each warehouse receipt or the warehouseman's supplemental certificate (in duplicate), properly identified with the warehouse receipt, must show: (1) Gross weight or bushels, (2) grade, (3) test weight, (4) dockage, and (5) percentage of damage when such factor, and not test weight, determines the grade. The warehouse receipt or the warehouseman's supplemental certificate must show whether the flaxseed arrived by rail, truck or barge. In the case of flaxseed delivered by rail or barge, the grading factors on the warehouse receipt or warehouseman's supplemental certificate must agree with the inbound inspection certificate for the car or barge if such certificate is issued.

(c) A separate warehouse receipt must be submitted for each grade of flaxseed.

(d) The warehouse receipt may be subject to liens for warehouse charges only to the extent indicated in § 421.659.

(e) Warehouse receipts representing flaxseed which has been shipped by rail or water from a country shipping point to a designated terminal point, or shipped by rail or water from a country shipping point and stored in transit to a designated terminal point, must be accompanied by registered freight bills, or by a certificate containing similar information in a form prescribed by the CSS commodity office which shall be signed by the warehouseman and which may be part of the supplemental certificate.

§ 421.655 *Determination of quantity.* (a) The quantity of flaxseed placed under farm-storage loan may be determined either by weight or by measurement. The quantity of flaxseed placed under warehouse-storage loan or delivered under a farm-storage loan or under a purchase agreement shall be determined by weight.

(b) When the quantity is determined by weight, a bushel shall be 56 pounds of flaxseed free of dockage. In determining the quantity of sacked flaxseed by weight, a deduction of ¾ of a pound for each sack shall be made.

(c) When the quantity of flaxseed is determined by measurement, a bushel shall be 1.25 cubic feet of flaxseed testing 56 pounds per bushel. The quantity determined shall be the following percentages of the quantity determined for 56-pound flaxseed:

For flaxseed testing:	*Percentage*
56 pounds or over	100
55 pounds or over, but less than 56 pounds	98
54 pounds or over, but less than 55 pounds	96
53 pounds or over, but less than 54 pounds	94
52 pounds or over, but less than 53 pounds	92
51 pounds or over, but less than 52 pounds	90
50 pounds or over, but less than 51 pounds	88
49 pounds or over, but less than 50 pounds	85
48 pounds or over, but less than 49 pounds	83
47 pounds or over, but less than 48 pounds	81

(d) The percentage of dockage shall be determined and the weight of such dockage shall be deducted from the gross weight of the flaxseed in determining the net quantity available for loan or purchase.

§ 421.656 *Determination of quality.* The grade, grading factors, and all other quality factors shall be determined in

accordance with the method set forth in the Official Grain Standards of the United States for Flaxseed, whether or not such determinations are made on the basis of an official inspection.

§ 421.657 *Maturity of loans.* Loans mature on demand but not later than January 31, 1955, in Arizona and California, and not later than April 30, 1955, in all other States.

§ 421.658 *Support rates.* Basic support rates for flaxseed placed under loan or delivered under a purchase agreement will be set forth in this section.

(a) *Basic support rates at designated terminal markets.* (1) Basic support rates per bushel for No. 1 flaxseed stored in approved warehouses at terminal markets listed below are as follows:

Terminal market:	Rate per bushel for No. 1
Los Angeles, Calif	$3.66
San Francisco, Calif	3.60
Chicago, Ill	3.41
Duluth, Minn., and St. Paul, Minn	3.41
Superior, Wis	3.41
Fredonia, Kans	3.16
Corpus Christi and Houston, Tex	3.16

(2) Flaxseed eligible for loan or purchase at the support rates shown in the above schedule must have been shipped on a domestic interstate freight rate basis. On any flaxseed shipped at other than the domestic interstate freight rate, the support rate at the designated terminal market shall be reduced by the amount that the rate of the freight paid (plus tax) is lower than the domestic interstate freight rate (plus tax).

(3) The support rates established for the designated terminal markets apply to flaxseed which has been shipped by rail or water from a country shipping point to one of the designated terminal markets, as evidenced by paid freight bills duly registered for transit privileges: *Provided,* That in the event the amount of paid-in freight is insufficient to guarantee the minimum proportional domestic interstate freight rate from the terminal market, there shall be deducted from the applicable terminal support rate the difference between the amount of freight actually paid in and the amount required to be paid in to guarantee outbound movement at the minimum proportional domestic interstate freight rate.

(4) When shipped by rail or water and stored at any designated terminal market, flaxseed for which neither registered freight bills nor registered freight certificates are presented to guarantee outbound movement at the minimum proportional domestic interstate freight rate, shall have a support rate equal to the terminal rate minus 8 cents per bushel.

(5) For flaxseed received by truck and stored at any designated terminal market, the support rate shall be the terminal rate minus 12½ cents per bushel.

(b) *Support rates for flaxseed in approved warehouse-storage at other than designated terminal markets.* (1) The support rate for flaxseed stored in approved warehouses (other than those situated in the designated terminal markets) which is shipped by rail or water, shall be determined by deducting from the appropriate designated terminal market rate an amount equal to the transit balance, if any (plus tax), of the through-freight rate from point of origin for such flaxseed to such terminal market: *Provided,* That on any flaxseed shipped at other than the domestic interstate freight rate, the support rate shall be further reduced by the amount that the rate of the freight paid (plus tax) is lower than the domestic interstate freight rate (plus tax) from the point of origin of such flaxseed to the point of storage: *And provided further,* That in the case of flaxseed stored at any railroad transit point taking a penalty by reason of out-of-line movement to the appropriate designated market, or for any other reason, there shall be added to such transit balance an amount equal to any out-of-line costs or other costs incurred in storing flaxseed in such position.

(2) The warehouse receipts must be accompanied by the original paid freight bills or certificates of the warehouseman and other required documents as set forth in § 421.654.

(c) *County support rates.* (1) The basic county support rates for No. 1 flaxseed are as follows: (Farm-storage loans and country warehouse-storage loans, except as otherwise provided in paragraph (b) of this section, will be based on the support rate established for the county in which the flaxseed is stored. If two or more approved warehouses are located in the same or adjoining towns, villages, or cities having the same interstate freight rate, such towns, villages, or cities shall be deemed to constitute one shipping point and the same support rate shall apply even though such warehouses are not all located in the same county. Such support rate shall be the highest support rate of the counties involved.)

ARIZONA

County	Rate per bushel	County	Rate per bushel
Graham	$3.05	Pinal	$3.38
Maricopa	3.39	Yavapai	3.09
Pima	3.29	Yuma	3.41

CALIFORNIA

Alameda	$3.47	Riverside	$3.44
Colusa	3.41	Sacramento	3.44
Fresno	3.44	San Benito	3.44
Imperial	3.45	San Joaquin	3.44
Kern	3.46	San Mateo	3.48
Kings	3.46	Santa Clara	3.47
Los Angeles	3.52	Santa Cruz	3.44
Madera	3.43	Sutter	3.41
Merced	3.43	Yolo	3.44
Napa	3.47		

GEORGIA

All counties	$2.60

IOWA

County	Rate per bushel	County	Rate per bushel
Adair	$3.08	Buchanan	$3.15
Adams	3.09	Buena Vista	3.15
Allamakee	3.16	Butler	3.16
Appanoose	3.11	Calhoun	3.15
Audubon	3.11	Carroll	3.13
Benton	3.15	Cass	3.09
Black Hawk	3.15	Cedar	3.16
Boone	3.13	Cerro Gordo	3.17
Bremer	3.16	Cherokee	3.14

IOWA—Continued

County	Rate per bushel	County	Rate per bushel
Chickasaw	$3.16	Lyon	$3.14
Clarke	3.09	Madison	3.11
Clay	3.16	Mahaska	3.12
Clayton	3.15	Marion	3.11
Clinton	3.17	Marshall	3.15
Crawford	3.12	Mills	3.10
Dallas	3.13	Mitchell	3.18
Davis	3.12	Monona	3.13
Decatur	3.09	Monroe	3.11
Delaware	3.15	Montgomery	3.09
Des Moines	3.16	Muscatine	3.16
Dickinson	3.16	O'Brien	3.15
Dubuque	3.16	Osceola	3.16
Emmet	3.18	Page	3.09
Fayette	3.16	Palo Alto	3.16
Floyd	3.17	Plymouth	3.13
Franklin	3.16	Pocahontas	3.15
Fremont	3.10	Polk	3.13
Greene	3.14	Pottawattamie	3.08
Grundy	3.15	Poweshiek	3.13
Guthrie	3.13	Ringgold	3.08
Hamilton	3.15	Sac	3.14
Hancock	3.17	Scott	3.17
Hardin	3.15	Shelby	3.12
Harrison	3.12	Sioux	3.14
Henry	3.15	Story	3.14
Howard	3.18	Tama	3.15
Humboldt	3.16	Taylor	3.07
Ida	3.13	Union	3.09
Iowa	3.13	Van Buren	3.13
Jackson	3.17	Wapello	3.12
Jasper	3.13	Warren	3.11
Jefferson	3.13	Washington	3.14
Johnson	3.15	Wayne	3.11
Jones	3.16	Webster	3.15
Keokuk	3.13	Winnebago	3.18
Kossuth	3.17	Winneshiek	3.16
Lee	3.16	Woodbury	3.13
Linn	3.15	Worth	3.18
Louisa	3.16	Wright	3.16
Lucas	3.11		

KANSAS

Allen	$2.96	Leavenworth	$2.90
Anderson	2.94	Lincoln	2.87
Atchison	2.91	Linn	2.90
Bourbon	2.91	Lyon	2.93
Brown	2.85	McPherson	2.90
Butler	2.93	Marion	2.90
Chase	2.91	Marshall	2.85
Chautauqua	2.94	Miami	2.93
Cherokee	2.93	Mitchell	2.85
Clay	2.87	Montgomery	2.98
Cloud	2.85	Morris	2.91
Coffey	2.94	Nemaha	2.84
Cowley	2.93	Neosho	2.97
Crawford	2.94	Osage	2.94
Dickinson	2.90	Osborne	2.84
Douglas	2.94	Ottawa	2.88
Doniphan	2.85	Pawnee	2.85
Elk	2.97	Pottawatomie	2.88
Ellis	2.84	Reno	2.91
Ellsworth	2.88	Republic	2.85
Finney	2.81	Rice	2.88
Ford	2.84	Riley	2.89
Franklin	2.94	Russell	2.85
Geary	2.90	Saline	2.88
Greenwood	2.96	Sedgwick	2.91
Harper	2.90	Shawnee	2.92
Harvey	2.90	Stafford	2.87
Jackson	2.88	Sumner	2.91
Jefferson	2.92	Wabaunsee	2.90
Jewell	2.85	Washington	2.85
Johnson	2.94	Wilson	2.99
Kingman	2.90	Woodson	2.97
Kiowa	2.85	Wyandotte	2.94
Labette	2.95		

MICHIGAN

Alpena	$3.02	Mackinac	$3.03
Benzie	3.07	Menominee	3.11
Cass	3.15	Midland	3.07
Cheboygan	3.03	Monroe	3.09
Chippewa	3.03	Ontonagon	3.08
Crawford	3.05	Saint Clair	3.07
Iosco	3.05	Sanilac	3.06
Luce	3.03	Wayne	3.08

MINNESOTA

County	Rate per bushel	County	Rate per bushel
Aitkin	$3.22	Martin	$3.18
Anoka	3.25	Meeker	3.22
Becker	3.17	Mille Lacs	3.22
Beltrami	3.16	Morrison	3.20
Benton	3.21	Mower	3.19
Big Stone	3.16	Murray	3.17
Blue Earth	3.20	Nicollet	3.22
Brown	3.20	Nobles	3.16
Carlton	3.23	Norman	3.15
Carver	3.24	Olmsted	3.20
Cass	3.18	Otter Tail	3.18
Chippewa	3.19	Pennington	3.13
Chisago	3.22	Pine	3.21
Clay	3.15	Pipestone	3.16
Clearwater	3.16	Polk	3.14
Cottonwood	3.18	Pope	3.19
Crow Wing	3.20	Ramsey	3.25
Dakota	3.24	Red Lake	3.14
Dodge	3.20	Redwood	3.19
Douglas	3.19	Renville	3.20
Faribault	3.18	Rice	3.22
Fillmore	3.17	Rock	3.15
Freeborn	3.20	Roseau	3.12
Goodhue	3.21	St. Louis	3.21
Grant	3.18	Scott	3.24
Hennepin	3.24	Sherburne	3.23
Houston	3.17	Sibley	3.22
Hubbard	3.17	Stearns	3.21
Isanti	3.22	Steele	3.20
Itasca	3.20	Stevens	3.18
Jackson	3.17	Swift	3.19
Kanabec	3.22	Todd	3.19
Kandiyohi	3.21	Traverse	3.15
Kittson	3.11	Wabasha	3.21
Koochiching	3.12	Wadena	3.19
Lac Qui Parle	3.17	Waseca	3.20
Lake of the Woods	3.13	Washington	3.25
Le Sueur	3.22	Watonwan	3.19
Lincoln	3.17	Wilkin	3.16
Lyon	3.18	Winona	3.20
McLeod	3.22	Wright	3.23
Mahnomen	3.14	Yellow Medicine	3.18
Marshall	3.13		

MONTANA

Beaverhead	$2.71	Liberty	$2.86
Big Horn	2.80	McCone	2.96
Blaine	2.89	Musselshell	2.89
Broadwater	2.86	Park	2.86
Carbon	2.86	Petroleum	2.86
Carter	2.98	Phillips	2.91
Cascade	2.86	Pondera	2.86
Chouteau	2.86	Powder River	2.95
Custer	2.96	Prairie	2.97
Daniels	2.94	Richland	2.98
Dawson	2.97	Roosevelt	2.98
Deer Lodge	2.82	Rosebud	2.92
Fallon	2.98	Sheridan	2.97
Fergus	2.86	Stillwater	2.86
Gallatin	2.86	Sweet Grass	2.86
Garfield	2.95	Teton	2.86
Glacier	2.86	Toole	2.86
Golden Valley	2.86	Treasure	2.91
Hill	2.86	Valley	2.94
Judith Basin	2.86	Wheatland	2.86
Lewis and Clark	2.85	Wibaux	2.99
		Yellowstone	2.86

NORTH DAKOTA

Adams	$3.03	Grant	$3.05
Barnes	3.13	Griggs	3.12
Benson	3.09	Hettinger	3.04
Billings	3.03	Kidder	3.09
Bottineau	3.05	La Moure	3.11
Bowman	3.02	Logan	3.09
Burke	3.04	McHenry	3.07
Burleigh	3.08	McIntosh	3.09
Cass	3.14	McKenzie	3.00
Cavalier	3.09	McLean	3.06
Dickey	3.12	Mercer	3.04
Divide	3.02	Morton	3.05
Dunn	3.03	Mountrail	3.04
Eddy	3.10	Nelson	3.10
Emmons	3.07	Oliver	3.06
Foster	3.11	Pembina	3.10
Golden Valley	3.00	Pierce	3.08
Grand Forks	3.12	Ramsey	3.09

NORTH DAKOTA—Continued

Ransom	$3.13	Steele	$3.13
Renville	3.04	Stutsman	3.11
Richland	3.15	Towner	3.08
Rolette	3.07	Traill	3.13
Sargent	3.14	Walsh	3.10
Sheridan	3.08	Ward	3.05
Sioux	3.05	Wells	3.09
Slope	3.00	Williams	3.03
Stark	3.04		

OKLAHOMA

Alfalfa	$2.87	Marshall	$2.80
Caddo	2.81	Mayes	2.90
Canadian	2.81	Murray	2.80
Choctaw	2.78	Muskogee	2.87
Comanche	2.80	Noble	2.88
Cotton	2.78	Nowata	2.94
Craig	2.91	Okfuskee	2.83
Delaware	2.90	Okmulgee	2.85
Garfield	2.88	Osage	2.90
Grady	2.81	Ottawa	2.90
Grant	2.88	Pittsburg	2.83
Haskell	2.84	Pontotoc	2.81
Hughes	2.83	Pushmataha	2.80
Johnston	2.80	Rogers	2.91
Kay	2.90	Seminole	2.83
Kingfisher	2.83	Sequoyah	2.84
Latimer	2.81	Tillman	2.78
Le Flore	2.82	Tulsa	2.91
Love	2.79	Wagoner	2.90
McCurtain	2.76	Washington	2.92
McIntosh	2.85	Woods	2.87
Major	2.83	Woodward	2.83

SOUTH DAKOTA

Aurora	$3.09	Jackson	$3.02
Beadle	3.13	Jerauld	3.12
Bennett	2.99	Jones	3.03
Bon Homme	3.10	Kingsbury	3.15
Brookings	3.16	Lake	3.14
Brown	3.13	Lawrence	2.98
Brule	3.07	Lincoln	3.14
Buffalo	3.10	Lyman	3.05
Butte	2.98	McCook	3.14
Campbell	3.08	McPherson	3.10
Charles Mix	3.08	Marshall	3.13
Clark	3.15	Meade	3.01
Clay	3.13	Mellette	3.01
Codington	3.15	Miner	3.14
Corson	3.06	Minnehaha	3.15
Custer	2.98	Moody	3.15
Davison	3.12	Pennington	3.01
Day	3.14	Perkins	3.03
Deuel	3.16	Potter	3.09
Dewey	3.05	Roberts	3.15
Douglas	3.09	Sanborn	3.12
Edmunds	3.11	Shannon	2.98
Fall River	2.92	Spink	3.13
Faulk	3.11	Stanley	3.08
Grant	3.16	Sully	3.08
Gregory	3.05	Todd	3.01
Haakon	3.04	Tripp	3.02
Hamlin	3.15	Turner	3.13
Hand	3.12	Union	3.14
Hanson	3.13	Walworth	3.09
Harding	3.03	Washabaugh	3.02
Hughes	3.09	Yankton	3.12
Hutchinson	3.11	Ziebach	3.03
Hyde	3.10		

TEXAS

Carson	$2.75	Hockley	$2.75
Culberson	2.68	Moore	2.73
Floyd	2.75	Pecos	2.69
Glasscock	2.75		

WISCONSIN

Adams	$3.15	Crawford	$3.15
Ashland	3.18	Dane	3.18
Barron	3.19	Dodge	3.17
Bayfield	3.19	Door	3.12
Brown	3.15	Douglas	3.23
Buffalo	3.19	Dunn	3.20
Burnett	3.21	Eau Claire	3.19
Calumet	3.16	Florence	3.10
Chippewa	3.18	Fond du Lac	3.18
Clark	3.16	Forest	3.12
Columbia	3.16	Grant	3.15

WISCONSIN—Continued

Green	$3.18	Polk	$3.22
Green Lake	3.16	Portage	3.14
Iowa	3.15	Price	3.16
Iron	3.15	Racine	3.24
Jackson	3.18	Richland	3.15
Jefferson	3.19	Rock	3.19
Juneau	3.15	Rusk	3.18
Kenosha	3.24	St. Croix	3.23
Kewaunee	3.13	Sauk	3.16
La Crosse	3.16	Sawyer	3.19
Lafayette	3.16	Shawano	3.14
Langlade	3.12	Sheboygan	3.17
Lincoln	3.11	Taylor	3.16
Manitowoc	3.16	Trempealeau	3.18
Marathon	3.15	Vernon	3.16
Marinette	3.12	Vilas	3.11
Marquette	3.15	Walworth	3.20
Milwaukee	3.23	Washburn	3.20
Monroe	3.16	Washington	3.18
Oconto	3.13	Waukesha	3.19
Oneida	3.11	Waupaca	3.15
Outagamie	3.16	Waushara	3.15
Ozaukee	3.18	Winnebago	3.16
Pepin	3.21	Wood	3.15
Pierce	3.22		

(2) Where the State committee determines that State or district weed control laws affect the flaxseed crop, the support rate will be 15 cents below the applicable county support rate set forth in the schedule under subparagraph (1) of this paragraph. If upon delivery of the flaxseed to CCC, the producer supplies a certificate indicating that the flaxseed complies with the weed control laws, the producer will be credited with the amount of the differential in determining the settlement value.

(d) *Discount.* The support rate for No. 2 flaxseed shall be 6 cents per bushel less than the support rate for No. 1 flaxseed.

§ 421.659 *Warehouse charges.* (a) Warehouse receipts and the flaxseed represented thereby stored in approved warehouses operating under the Uniform Grain Storage Agreement may be subject to liens for warehouse handling and storage charges at not to exceed the Uniform Grain Storage Agreement rates from the date the flaxseed is deposited in the warehouse for storage. Where the date of deposit (the date of the warehouse receipt if the date of deposit is not shown) on warehouse receipts representing flaxseed stored in warehouses operating under the Uniform Grain Storage Agreement is on or before January 31, 1955, in Arizona and California or, on or before April 30, 1955, in all other States, there shall be deducted in computing the amount of the loan or purchase price the storage charges as determined by the President, CCC (to be published as an amendment to this subpart at a later date), unless written evidence has been submitted with the warehouse receipt that all warehouse charges, except receiving and loading out charges, have been prepaid through the applicable maturity date for the State.

(b) Warehouse receipts and the flaxseed represented thereby stored in approved warehouses operated by Eastern common carriers may be subject to liens for warehouse elevation (receiving and delivering) and storage charges from the date of deposit at rates approved by the Interstate Commerce Commission. There shall be deducted in computing

the loan rate or in computing the purchase price the amount of the approved tariff rate for storage (not including elevation), which will accumulate from the date of deposit through the program maturity date, unless written evidence has been submitted with the warehouse receipt that the storage charge has been prepaid. The county committee shall request the CSS commodity office to determine the amount of such charges.

§ 421.660 *Settlement*—(a) *Settlement value.* (1) In the case of eligible flaxseed delivered to CCC from farm storage under the loan program, settlement shall be made at the applicable support rate determined in accordance with § 421.418 (e). The support rate shall be for the grade and quality of the total quantity of flaxseed eligible for delivery.

(2) If, upon delivery, the flaxseed under farm-storage loan is of a grade and/or quality for which no support rate has been established, the settlement value shall be computed at the support rate established for the grade and/or quality placed under loan, less the difference, if any, at the time of delivery, between the market price for the grade and/or quality placed under loan and the market price of the flaxseed delivered, as determined by CCC: *Provided, however,* That if such flaxseed is sold by CCC in order to determine its market price, the settlement value shall not be less than such sales price.

(3) In the case of eligible flaxseed delivered to CCC under purchase agreement, settlement shall be made at the applicable support rate determined in accordance with § 421.418 (e).

(b) *Storage deduction for early delivery.* Whenever farm-stored flaxseed under loan or purchase agreement is delivered to CCC prior to January 31, 1955, in Arizona and California, or prior to April 30, 1955, in all other States, a deduction for storage shall be made in accordance with the schedule of deductions for warehouse charges (§421.659), except that no such deductions shall be made if such early delivery is made because the loan is called solely for the convenience of CCC, or if it is determined by CCC at the time of delivery that the flaxseed will be sold rather than stored, or if CCC requires early delivery on an area basis.

(c) *Refund of prepaid handling charges.* In case a warehouseman charges the producer for the receiving or the receiving and loading out charges on flaxseed under loan or purchase agreement (or charges for elevation in the case of warehouses operated by Eastern common carriers), the producer shall, upon delivery of the flaxseed to CCC, be reimbursed or given credit by the county office for such prepaid charges in an amount not to exceed the charges authorized under the Uniform Grain Storage Agreement, (or approved tariff in the case of warehouses operated by Eastern common carriers) provided, the producer furnishes to the county committee written evidence signed by the warehouseman that such charges have been paid.

(d) *Track-loading payment.* A track-loading payment of 3 cents per bushel will be made to the producer on flaxseed delivered to CCC on track at a country point.

Issued this 19th day of March 1954.

[SEAL] WALTER C. BERGER,
Acting Executive Vice President,
Commodity Credit Corporation.

[F. R. Doc. 54-2076; Filed, Mar. 23, 1954; 8:51 a. m.]

TITLE 7—AGRICULTURE

Chapter XI—Agricultural Conservation Program Service, Department of Agriculture

[1061 (53)-1, Supp. 5]

PART 1101—NATIONAL AGRICULTURAL CONSERVATION

SUBPART—1953

TIME AND MANNER OF FILING APPLICATION AND INFORMATION REQUIRED

Pursuant to the authority vested in the Secretary of Agriculture under sections 7-17 of the Soil Conservation and Domestic Allotment Act, as amended, the 1953 National Agricultural Conservation Program, issued July 28, 1952 (17 F. R. 6995), as amended July 28, 1952 (17 F. R. 7110), October 30, 1952 (17 F. R. 9921), July 24, 1953 (18 F. R. 4419), and July 30, 1953 (18 F. R. 4592), is further amended as follows:

Section 1101.493 (b) is amended by deleting from the first sentence the wording "February 15, 1954, in New Hampshire;" and inserting after the semicolon following the word "Maine" the wording "April 15, 1954, in New Hampshire;".

(Sec. 4, 49 Stat. 164; 16 U. S. C. 590d. Interprets or applies secs. 7-17, 49 Stat. 1148, as amended; 16 U. S. C. 590g-590q)

Done at Washington, D. C., this 19th day of March 1954.

[SEAL] TRUE D. MORSE,
Acting Secretary of Agriculture.

[F. R. Doc. 54-2060; Filed, Mar. 23, 1954; 8:47 a. m.]

[ACP-1954-P. R. Supp. 2]

PART 1102—AGRICULTURAL CONSERVATION; PUERTO RICO

SUBPART—1954

RESPONSIBILITY FOR TECHNICAL PHASES

Pursuant to the authority vested in the Secretary of Agriculture under sections 7-17 of the Soil Conservation and Domestic Allotment Act, as amended, and the Department of Agriculture Appropriation Act, 1954, the 1954 Agricultural Conservation Program; Puerto Rico, issued December 17, 1953 (18 F. R. 8627), as amended January 29, 1954 (19 F. R. 643), is further amended as follows:

Section 1102.407 is amended by revising the first sentence of paragraph (a) to read as follows:

§ 1102.407 *Responsibility for technical phases.* (a) The Soil Conservation Service is responsible for the technical phases of the practices contained in §§ 1102.411 to 1102.418 and 1102.420. * * *

(Sec. 4, 49 Stat. 164; 16 U. S. C. 590d. Interprets or applies secs. 7-17, 49 Stat. 1148, as amended, Pub. Law 156, 83d Cong.; 16 U. S. C. 590g-590q)

Done at Washington, D. C., this 19th day of March 1954.

[SEAL] TRUE D. MORSE,
Acting Secretary of Agriculture.

[F. R. Doc. 54-2059; Filed, Mar. 23, 1954; 8:47 a. m.]

[ACP-1954-Alaska, Supp. 2]

PART 1104—AGRICULTURAL CONSERVATION; ALASKA

SUBPART—1954

MISCELLANEOUS AMENDMENTS

Pursuant to the authority vested in the Secretary of Agriculture under sections 7-17 of the Soil Conservation and Domestic Allotment Act, as amended, and the Department of Agriculture Appropriation Act, 1954, the 1954 Agricultural Conservation Program; Alaska, issued December 11, 1953 (18 F. R. 8260), as amended January 29, 1954 (19 F. R. 643), is further amended as follows:

1. Section 1104.315 is amended by revising the paragraph entitled "Maximum Federal cost-share" to read as follows:

§ 1104.315 *Practice 5: Clearing land to permit land-use adjustments needed in establishing soil conserving cropping systems.* * * *

Maximum Federal cost-share. 50 percent of the cost of clearing and breaking, but not in excess of $40 per acre.

2. Section 1104.332 is amended to read as follows:

§ 1104.332 *Cost to farmer.* The farmer shall pay that part of the cost of the service, as established under instructions issued by the Administrator, which is in excess of the Federal cost-share for the practice in connection with which the service is furnished.

(Sec. 4, 49 Stat. 164; 16 U. S. C. 590d. Interprets or applies secs. 7-17, 49 Stat. 1148, as amended, Pub. Law 156, 83d Cong.; 16 U. S. C. 590g-590q)

Done at Washington, D. C., this 19th day of March 1954.

[SEAL] TRUE D. MORSE,
Acting Secretary of Agriculture.

[F. R. Doc. 54-2058; Filed, Mar. 23, 1954; 8:47 a. m.]

TITLE 32—NATIONAL DEFENSE

Chapter V—Department of the Army

Subchapter F—Personnel

PART 577—MEDICAL AND DENTAL ATTENDANCE

MISCELLANEOUS AMENDMENTS

1. In § 577.15 (c), subparagraphs (18) and (20) are amended as follows:

§ 577.15 *Persons eligible to receive medical care at Army medical treatment facilities.* * * *

(c) *Eligible personnel.* * * *

(18) Female personnel of the Armed Forces discharged from or relieved from extended active duty under honorable conditions because of pregnancy, or who,

although separated under honorable conditions for reasons other than pregnancy, are shown by the record of terminal physical examination to have been pregnant at the time of separation.

* * * * *

(20) Nationals of foreign governments within the continental United States to include foreign military personnel in the attaché system carried on the current "Diplomatic List" (Blue) and those carried and designated as military personnel on the "List of Employees of Diplomatic Missions Not Printed in the Diplomatic List" (White) published by the State Department; foreign military personnel assigned or attached to United States military installations or units for duty or training; foreign military personnel on foreign government military or supply missions accredited to and recognized by one of the military departments; foreign military personnel on duty in the United States at the invitation of the Secretary of Defense or one of the military departments; foreign military personnel accredited to joint United States defense boards or commissions, or assigned to full-time duty with the North Atlantic Treaty Organization when stationed in the United States; Mutual Defense Assistance Program (MDAP) trainees (military or civilian) assigned or attached to United States military installations or units within the continental United States for training; dependents of personnel listed above when they are residing with their principals, except dependents of MDAP trainees (civilian); other foreign personnel under exceptional circumstances; and foreign personnel covered in agreements entered into by the Secretary of Defense or one of the military departments. The following procedures will govern the furnishing of medical care to nationals of foreign governments (hereafter referred to as foreign personnel):

(i) Inpatient care will be limited to cases which, in the judgment of the commanding officer of the medical treatment facility concerned, will be benefited by hospitalization for a reasonable time. Those patients requiring merely domiciliary care or suffering from chronic conditions (e. g., tuberculosis, mental diseases, degenerative neurological diseases) will be admitted only in case of extreme necessity, where such admission will save life or prevent undue suffering.

(ii) When foreign personnel have been admitted to an Army medical treatment facility in the continental United States, and it develops that hospitalization must be prolonged beyond a reasonable length of time (in any event when in excess of 90 days), a written report giving full identification, diagnosis, prognosis, and probable date the patient can be released will be submitted to The Surgeon General, Department of the Army.

(iii) MDAP trainees who have been selected by their country for training in the United States are presumed to be in good physical condition and free from communicable diseases as a prerequisite to selection. If upon arrival in the United States, it is discovered that the trainee cannot qualify for training by reason of physical and/or mental disability, and will require more than nominal medical treatment before entering training, the trainee will be returned to his country immediately or as soon thereafter as his condition permits travel. When the trainee is disabled after starting his training and, in the opinion of the commanding officer of the medical treatment facility concerned in consultation with the commanding officer of the training facility concerned, such disability will prevent continuation of the training for the period in excess of 90 days, the trainee will be returned to his home country as soon as his condition permits travel.

(iv) The transfer of foreign personnel between oversea commands and the continental United States solely for the purpose of providing medical care in Army medical treatment facilities is not authorized, except under unusual circumstances as determined by the Secretary of the Army.

2. Sections 577.19 and 577.20 are revoked, as follows:

§ 577.19 *Civilian hospital employees.* [Revoked.]

§ 577.20 *Hospital laundry service.* [Revoked.]

[AR 40-610, Feb. 4, 1954 and C3, AR 40-506, Mar. 5, 1954] (R. S. 161, 5 U. S. C. 22)

[SEAL] WM. E. BERGIN,
Major General, U. S. Army,
The Adjutant General.

[F. R. Doc. 54-2054; Filed, Mar. 23, 1954; 8:46 a. m.]

PART 580—WOMEN'S ARMY CORPS

MATERNITY CARE

In § 580.14, paragraph (a) is amended as follows:

§ 580.14 *Maternity care.* (a) A woman separated from the Army under honorable conditions because of pregnancy, or who, although separated under honorable conditions for other reasons, is shown by the record of her terminal physical examination to have been pregnant at the time of separation, is eligible for maternity care as provided by § 577.15 of this subchapter.

[C1, AR 625-5, Mar. 10, 1954] (Sec. 101, 62 Stat. 356; 10 U. S. C. 316)

[SEAL] WM. E. BERGIN,
Major General, U. S. Army,
The Adjutant General.

[F. R. Doc. 54-2055; Filed, Mar. 23, 1954; 8:46 a. m.]

TITLE 33—NAVIGATION AND NAVIGABLE WATERS

Chapter I—Coast Guard, Department of the Treasury

[CGFR 54-10]

PART 135—LIGHTS FOR COAST GUARD VESSELS OF SPECIAL CONSTRUCTION

EXEMPTIONS OF STATUTORY REQUIREMENTS FOR COAST GUARD PATROL BOATS

Certain Coast Guard vessels of special construction cannot comply with certain applicable statutory requirements relating to the lights required to be displayed by public and private vessels when navigating on the high seas or navigable waters of the United States, its territories or possessions, without seriously affecting the military characteristics and functions of the vessels concerned.

It is hereby found that the Coast Guard vessels of special construction listed in 33 CFR 135.30 (e) below, cannot comply with the requirement in Rule 2 (a) (iii), International Rules, regarding the height of the forward masthead light, until new masts are installed or suitable alterations are effected to raise the height of the forward masthead light from 17 feet to 20 feet above the hull, and such vessels are, therefore, exempted from this requirement until this alteration can be accomplished or before December 31, 1954. It is hereby found and certified that the requirements in 33 CFR 135.30 (e), regarding the height of the forward masthead light which will be carried by the Coast Guard vessels described, conform as closely as feasible to the applicable statutory requirement.

Except as otherwise provided, the Coast Guard vessels described in this document are in full compliance with the other provisions of the applicable International Rules or Inland Rules governing the areas where the vessels are being operated.

This is the third document describing exemptions of statutory requirements for Coast Guard vessels. The other documents (CGFR 53-50 and 53-61), dated November 25 and December 23, 1953, were published in the FEDERAL REGISTERS dated December 1 and 31, 1953 (18 F. R. 7641, 7642, 8897, 8898).

By virtue of the authority vested in me as Commandant, United States Coast Guard, by Treasury Department Order No. 167-6, dated November 17, 1953 (18 F. R. 7571), to promulgate regulations in accordance with the statutes cited with the regulations below, the following amendment is prescribed:

Section 135.30 is amended by adding a new paragraph (e), reading as follows:

§ 135.30 *International Rules; height of forward masthead light.* * * *

(e) The following patrol boats, class WPB, 83 feet long, have a breadth of 16 feet 7 inches and shall carry the forward masthead light at a height of 17 feet above the hull until properly arranged on or before December 31, 1954:

CG-83300	CG-83392	CG-83482
CG-83303	CG-83394	CG-83483
CG-83312	CG-83397	CG-83484
CG-83320	CG-83400	CG-83486
CG-83327	CG-83403	CG-83487
CG-83334	CG-83411	CG-83488
CG-83337	CG-83412	CG-83489
CG-83342	CG-83427	CG-83490
CG-83346	CG-83428	CG-83491
CG-83359	CG-83435	CG-83493
CG-83360	CG-83450	CG-83497
CG-83362	CG-83452	CG-83499
CG-83366	CG-83453	CG-83501
CG-83370	CG-83455	CG-83503
CG-83378	CG-83456	CG-83504
CG-83381	CG-83457	CG-83506
CG-83382	CG-83463	CG-83518
CG-83387	CG-83464	CG-83523
CG-83388	CG-83468	CG-83524
CG-83389	CG-83478	CG-83527
CG-83391	CG-83481	CG-83529

(Sec. 1, 59 Stat. 590, sec. 2, 65 Stat. 407; 33 U. S. C. 360, 143a. Interprets or applies sec. 4, 62 Stat. 250, sec. 6, Rule 13 (b), 65 Stat. 415; 33 U. S. C. 356, 145k)

Dated: March 18, 1954.

[SEAL] MERLIN O'NEILL,
Vice Admiral, U. S. Coast Guard, Commandant.

[F. R. Doc. 54-2063; Filed, Mar. 23, 1954; 8:47 a. m.]

TITLE 35—PANAMA CANAL

Chapter I—Canal Zone Regulations

PART 4—OPERATION AND NAVIGATION OF PANAMA CANAL AND ADJACENT WATERS

EXEMPTIONS FROM COMPULSORY PILOTAGE

Pursuant to the authority vested in the Governor by §§ 4.11 and 4.22 of Title 35 of the Code of Federal Regulations, § 4.23 is hereby amended to read as follows:

§ 4.23 *Exemptions from compulsory pilotage.* The following vessels are exempt from compulsory pilotage, except when the Port Captain considers a pilot necessary: *Provided, however,* That a pilot will nevertheless be furnished any such exempted vessel if requested by the commander or master thereof:

(a) Vessels of the Fifteenth Naval District, except as limited by paragraph (e) of this section.

(b) Local craft, such as United States Army and United States Navy minesweepers and tugs, and Panama Canal Company tugs and equipment, except as limited by paragraph (e) of this section.

(c) Small craft under 65 feet in length and drawing not over six feet of water that call at terminal ports without transiting the Canal.

(d) Any vessel that makes frequent calls to Canal Zone waters and whose current officers and crew are, in the opinion of the respective Port Captain, capable, by reason of such frequent calls, of safely navigating within Canal Zone waters, except as limited by paragraph (e) of this section.

(e) Vessels and craft enumerated in paragraphs (a), (b), (c) and (d) of this section may be permitted to transit the Canal without a pilot when, in the opinion of the respective Port Captain, the current officers and crew have the necessary experience and ability to make safe transit. Whenever any such vessel or craft makes transit without a pilot the respective Port Captain shall dispatch it with a larger vessel carrying a pilot, and it shall lock through with that vessel. The respective lock superintendents shall determine whether locomotives shall be used. The Port Captain, Balboa, shall control the movement of such vessel or craft through Gaillard Cut so as to minimize the danger of its being a navigational hazard to larger vessels.

(f) Any other vessel or craft as and to the extent exempted by the Marine Director.

(Sec. 5, 37 Stat. 562, as amended; 2 CZ Code 9, 48 U. S. C. 1318. E. O. 9746, 11 F. R. 7329, 3 CFR, 1946 Supp.)

[SEAL] J. S. SEYBOLD,
Governor.

MARCH 15, 1954.

[F. R. Doc. 54-2052; Filed, Mar. 23, 1954; 8:45 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 945]

ALASKA

REVOKING EXECUTIVE ORDER NO. 5214 OF OCTOBER 30, 1929

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910, c. 421 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 5214 of October 30, 1929, withdrawing certain areas of land and water in Alaska for use of the United States Navy Department for naval purposes, which was partially revoked by Executive Order No. 8736 of April 14, 1941 and by Public Land Order No. 903 of July 3, 1953, is also revoked so far as it affects the following-described lands:

A. THE COLD BAY-DOLGOI ISLAND AREA

All that area lying between latitude 54°49' North and 55°20' North, longitude 161°38' West and 162°44' West; less a tract of approximately 18 acres included in the revocation made by Executive Order No. 8736 of April 14, 1941.

The area described contains approximately 485,858 acres of land and 517,710 acres of water.

B. THE WIDE BAY AREA

All that area lying between latitude 57°15' North and 57°26' North and longitude 156° 01' West and 156°35' West.

The area described contains 61,162 acres of land and 116,531.20 acres of water.

A substantial portion of the Cold Bay-Dolgoi Island area is included in the withdrawal for military purposes made by Public Land Order No. 103 of March 27, 1943.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on the 35th day after the signing of the order, at which time the lands shall, subject to valid existing rights and to the provisions of existing withdrawals, be opened to settlement under the homestead laws and the homesite act of May 26, 1934 (48 Stat. 809; 48 U. S. C. 461), and to those forms of appropriation only by qualified veterans of World War II for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279-284), as amended, and by other qualified persons entitled to credit for service under the said act. Commencing at 10:00 a. m. on the 126th day after the date of this order, any of such land not settled upon by veterans or other persons entitled to credit for service shall become subject to settlement and other forms of appropriation by the public generally in accordance with appropriate laws and regulations.

Applications for the lands, which shall be filed in the Land Office, Bureau of Land Management, Anchorage, Alaska, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations to the extent that such regulations are applicable. Applications under the homesite or homestead laws shall be governed by the regulations contained in Parts 64 and 66, inclusive, of Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Anchorage, Alaska.

[SEAL] ORME LEWIS,
Assistant Secretary of the Interior.

MARCH 18, 1954.

[F. R. Doc. 54-2049; Filed, Mar. 23, 1954; 8:45 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Docket No. 10783]

PART 3—RADIO BROADCAST SERVICES

TELEVISION BROADCAST STATIONS; TABLE OF ASSIGNMENTS

In the matter of amendment of § 3.606 *Table of assignments,* rules governing television broadcast stations; Docket No. 10783.

1. The Commission issued a notice of proposed rule making (FCC 53-1566), published in the FEDERAL REGISTER on December 3, 1953 (18 F. R. 7801), and on January 29, 1954, the Commission issued a notice of further proposed rule making (FCC 54-118), published in the FEDERAL REGISTER on February 4, 1954 (19 F. R. 654), concerning proposed changes in the television Table of Assignments for Lexington, Rock Island, Sneedville, and Jackson, Tennessee, Tupelo, Mississippi and Munford, Alabama.

2. The time for filing comments in this proceeding expired on February 26, 1954. Comments and counterproposals were filed by the Alabama Educational Television Commission, Mr. Frank Kyle Spain, Mr. Birney Imes, Jr., and the Tennessee Educational Television Commission. In the Commission's notice of further proposed rule making Dixie Broadcasting Company, permittee of Station WDXI-TV, Jackson, Tennessee, was ordered to show cause why its authorization should not be modified so as to specify operation on Channel 11 in lieu of Channel 9. A reply to this order was filed by the Dixie Broadcasting Company.

3. In his petition, Mr. Frank Kyle Spain urged that the following changes in the Table of Assignments be made:

City	Channel No.	
	Present	Proposed
Tupelo, Miss.	38	9−, 38
Jackson, Tenn.	9−, 16+	11, 16+

In support of the proposal petitioner urged that the proposed amendments conform to the Commission's rules and standards; that they constitute a more efficient utilization of the available channels; and that in view of the fact that Station WDXI–TV authorized for operation on Channel 9 at Jackson, Tennessee has not yet been constructed and will not commence operation before June, 1954, the change from Channel 9 to 11 in Jackson would not inconvenience the permittee of WDXI–TV.

4. The Alabama Educational Television Commission had proposed the following changes:

City	Channel No.	
	Present	Proposed
Munford, Ala.	None	*7
University, Ala.	*7	None

In support of the proposal petitioner urged that the proposed amendments conform to the Commission's rules and standards; that it would permit the utilization of Mt. Cheaha, the highest point in the State of Alabama for the educational station thereby providing the greatest possible coverage to the most populated areas of the state; and that an application will be filed for the use of the channel in the event the amendment as proposed is adopted.

5. The Tennessee Educational Television Commission had proposed the following changes in the table:

City	Channel No.	
	Present	Proposed
Lexington, Tenn.	None	*11
Rock Island, Tenn.	None	*7
Sneedville, Tenn.	None	*2+

In support of the requested amendment, petitioner urged that there are presently assigned 4 television channels in the State of Tennessee which are reserved for educational use; that these assignments would not provide for complete coverage of the state; that the addition of the three assignments as requested would provide almost complete coverage of the state; and that these assignments conform to all the requirements of the Commission's rules and may be made without any other changes in the table.

6. The proposal of Frank Kyle Spain conflicted with that of the Tennessee Educational Television Commission in that Channel 11 could not be assigned both to Lexington, Tennessee and Jackson, Tennessee under our assignment spacing requirement rules. Similarly, the proposal of the Alabama Educational Television Commission conflicted with that of the Tennessee Commission in that Channel 7 could not be assigned both to Rock Island, Tenn., and Munford, Alabama. The Tennessee Commission filed comments in which it modified its request so as to delete the request for the assignment of Channel 7 to Rock Island, Tennessee and offered a counterproposal which is aimed at removing the conflicts with the other two proposals as follows:

City	Channel No.	
	Present	Proposed
Munford, Ala.	None	*7
University, Ala.	*7	None
Tupelo, Miss.	38	9−, 38
Cookeville, Tenn.	24	24, *69
Crossville, Tenn.	None	*77
Jackson, Tenn.	9−, 16+	7+, 16+
Lexington, Tenn.	None	*11
Sneedville, Tenn.	None	*2

This proposal would also require a change in the offset requirement only of the assignment of Channel 9 to Hattiesburg, Mississippi, from Channel 9— to Channel 9, and of the assignment of Channel 11 to Meridian, Mississippi, from Channel 11 to Channel 11—. The Tennessee Commission urged that this counterproposal would remove the conflicts with the other two proposals; would be technically feasible; and would make possible almost complete coverage of the State of Tennessee with educational programs. The assignments for Cookeville and Crossville were proposed in order to replace Channel 7 previously proposed for Rock Island. The Alabama Commission filed comments in support of its proposal and stated that the modification of the Tennessee Commission proposal insofar as it deleted the request for Channel 7 at Rock Island, removed the conflict between the two. Petitioner further urged that Channel 74 be made available to University and be reserved for noncommercial educational use as a replacement for Channel 7.

7. Frank Kyle Spain urged that both his proposal and that of the Alabama Commission could be granted and that two assignments could be made available to the Tennessee Commission in the event Channel 7 were assigned to another community instead of Rock Island.

8. In response to the Show Cause Order, The Dixie Broadcasting Company objected to the use of Channel 11 at Jackson on the grounds that second harmonic interference could be expected from the operation of FM Station WTJS–FM operating on 100.7 Mc. at Jackson. Dixie Broadcasting Company, however, consented to the use of Channel 7 at Jackson as proposed by the Tennessee Educational Television Commission.

9. The counterproposal of the Tennessee Commission and the proposal of the Alabama Commission are technically feasible and the Commission is of the view that the reassignment of channels as proposed would more efficiently utilize the available spectrum and would be in the public interest.

Accordingly, it is ordered, That the counterproposal of the Tennessee Educational Television Commission and the petition of the Alabama Educational Television Commission and the petition of Frank Kyle Spain, insofar as it requests the assignment of Channel 9 to Tupelo, are adopted.

It is further ordered, That effective 30 days after publication in the FEDERAL REGISTER the outstanding authorization of Station WDXI-TV in Jackson, Tennessee (BMPCT–1824) will be modified to specify operation on Channel 7 in lieu of Channel 9, and an appropriate authorization will be issued to the Dixie Broadcasting Company. *It is further ordered,* That effective 30 days after publication in the FEDERAL REGISTER, the table of assignments, contained in § 3.606, rules governing television broadcast stations, is amended as follows:

1. Add to the table:

City:	*Channel No.*
Munford, Ala.	*7
Crossville, Tenn.	*77
Lexington, Tenn.	*11
Sneedville, Tenn.	*2+

2. Amend the table to read:

City:	*Channel No.*
University, Ala.	*7+
Tupelo, Miss.	9−, 38
Cookeville, Tenn.	24, *69
Jackson, Tenn.	7+, 16+

3. Change the Channel 9 assignment in Hattiesburg, Mississippi, from 9— to 9.

4. Change the Channel 11 assignment in Meridian, Mississippi, from 11 to 11—.

10. Authority for the adoption of the proposed amendments is contained in sections 4 (i), 301, 303 (c), (d), (f), and (r) and 307 (b) of the Communications Act of 1934, as amended.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interprets or applies secs. 301, 303, 307, 48 Stat. 1081, 1082, as amended, 1084; 47 U. S. C. 301, 303, 307)

Adopted: March 17, 1954.

Released: March 19, 1954.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 54-2064; Filed, Mar. 23, 1954; 8:48 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

Public Health Service

[42 CFR Part 32]

MEDICAL CARE FOR SEAMEN AND CERTAIN OTHER PERSONS

DEFINITION OF SEAMEN

Notice is hereby given that the Surgeon General of the Public Health Service, with the approval of the Secretary, Department of Health, Education, and Welfare, proposes to amend the definition of "seamen" in § 32.1 (d) of the Public Health Service Regulations (42 CFR Part 32) as indicated below. Interested persons may submit written data, views or arguments in regard to the proposed amendment to the Surgeon General of the Public Health Service, Washington 25, D. C. All relevant material received not later than thirty (30) days after the publication of this notice will be considered.

1. Section 32.1 (d) would be revised to read as follows:

(d) The term "seamen" includes any person employed on board in the care, preservation, or navigation of any vessel, or in the service, on board, of those engaged in such care, preservation, or navigation, but does not include the owner or joint owners of a vessel or the spouse of any such owner;

(Sec. 215, 321, 58 Stat. 690, 695, 42 U. S. C. 216, 248. Interprets sec. 2 (h), 58 Stat. 682, 42 U. S. C. 201 (h))

Dated: March 18, 1954.

[SEAL] W. PALMER DEARING,
Acting Surgeon General.

Approved:

OVETA CULP HOBBY,
Secretary.

[F. R. Doc. 54-2057; Filed, Mar. 23, 1954; 8:46 a. m.]

INTERSTATE COMMERCE COMMISSION

[49 CFR Parts 141–148]

TARIFFS AND SCHEDULES

FILING OF REDUCED RATE QUOTATIONS BY CARRIERS OF PROPERTY OR PERSONS AND CERTAIN PROCEDURAL MATTERS WITH RESPECT THERETO

MARCH 15, 1954.

Special rule or regulation governing filing of reduced rate quotations by carriers of property or persons under sections 6, 20 (1), 22, 217 (a), 217 (b), 220 (a), 306 (a), 306 (c), 313 (a), 405 (a), 405 (c), and 412 (a) of the Interstate Commerce Act, and certain procedural matters with respect thereto.

Pursuant to section 4 (a) of the Administrative Procedure Act (60 Stat. 237, 5 U. S. C. 1003) notice is hereby given of the proposed establishment of the following special rule or regulation governing the filing of reduced rate quotations under section 22 of the Interstate Commerce Act, and certain procedural matters with respect thereto. The proposed special rule or regulation is as follows:

Special rule governing the filing of reduced rate schedules under section 22 of the Interstate Commerce Act. All quotations or tenders by common carriers by rail, motor vehicle, and water, and by freight forwarders, or rates, fares, and charges for the transportation, storage, or handling of property or the transportation of persons free or at reduced rates shall be filed with the Interstate Commerce Commission 30 days prior to the effective date thereof, except that such quotations or tenders may be made effective upon less than 30 days' notice when an authorized official of the Federal department or agency for whose account the proposed services are to be rendered certifies to the Commission that a rate, fare, or charge for such services has been arrived at through negotiation between the said department or agency and the carrier or carriers concerned and that it is desirable, due to the imminence of movement, that the carrier or carriers be permitted to make the same effective upon less than 30 days' notice: *Provided*, That this requirement for filing shall not apply to transportation designated as classified for security reasons by an authorized official of a department or agency of the United States for whose account the services are rendered or proposed to be rendered.

Scope of special rule. This proposed rule governs the filing of quotations for the transportation and handling of property or persons free or at reduced rates for the United States, state or municipal governments, as permitted by section 22 of the Interstate Commerce Act.

Notice to interested persons. Notice of this proposed rule shall be given by publication of the text thereof in the FEDERAL REGISTER and by depositing a copy thereof in the office of the Secretary of the Commission.

Protests and requests for hearing. Protests against the adoption of this proposed rule shall be filed with the Commission within 30 days after the date of such publication in the FEDERAL REGISTER.

Failure seasonably to file a protest will be construed as a waiver of opposition and participation in this rule-making proceeding unless an oral hearing is held.

In addition to the requirements of Rule 40 of the general rules of practice, protests shall include a request for a public hearing, if one is desired, and shall specify with particularity the facts, matters and things relied upon, but shall not include issues or allegations phrased generally. Protests containing general allegations may be rejected.

Any request for an oral hearing shall be supported by an explanation as to why the evidence to be presented cannot reasonably be submitted in the form of affidavits. The Commission will determine whether or not assignment of the matter for hearing is necessary or desirable.

Any interested person, not a protestant, desiring to receive notice of the time and place of any hearing, prehearing conference taking of depositions, or other proceedings shall notify the Commission by letter or telegram within 30 days from the date of publication in the FEDERAL REGISTER.

[SEAL] GEORGE W. LAIRD,
Secretary.

[F. R. Doc. 54-2075; Filed, Mar. 23, 1954; 8:50 a. m.]

FEDERAL COMMUNICATIONS COMMISSION

[47 CFR Part 3]

[Docket No. 10964]

TELEVISION BROADCAST STATIONS

TABLE OF ASSIGNMENTS

1. Notice is hereby given that the Commission has received a proposal for rule making in the above-entitled matter.

2. The Commission has before it a petition filed on February 18, 1954, by Van Curler Broadcasting Corporation, Schenectady, New York, and now made part of this docket, requesting an amendment of § 3.606 *Table of assignments* rules governing television broadcast stations so as to assign Channel 35 to Albany-Schenectady-Troy, New York, in lieu of Schenectady, New York. An opposition, now also made part of this docket, was filed by Hudson Valley Broadcasting Company, Albany, New York.

3. In support of its requested amendment petitioner urges that Albany-Schenectady-Troy are considered as one business, industrial, and trading area; that the proximity and integration of these three cities warrants the assignment of Channel 35 to the communities in combination; and that the assignment of Channel 35 to Albany and Troy in addition to Schenectady was originally precluded by the inadequate spacing to Channel 42 in Greenfield and that this latter assignment has been changed.

4. In its opposition to the proposed rule making Hudson Valley stated that it was the permittee of Station WROW-TV on Channel 41 at Albany; and that it constructed the station at the cost of $400,000 upon reliance on the Table of Assignments as adopted in the Sixth Report and Order. It urged that Van Curler accepted a grant on Channel 35 for Schenectady but never intended to serve as an outlet for that city; that it will suffer economic injury in the event another television outlet is authorized for Albany; and that petitioner seeks to accomplish by rule making that which it could not by means of an application. Hudson Valley further requests that the Commission not institute rule making proceedings in this matter.

5. The Commission has considered the comments of Hudson Valley and finds no reasons which would warrant a denial of the proposal for institution of rule making in this case. It therefore is proposed to afford interested parties, including Hudson Valley, an opportunity to file comments with regard to the Van Curler proposal. In view of this, the request of Hudson Valley Broadcasting Company for the denial of the instant petition for rule making is denied.

6. Authority for the adoption of the proposed amendments is contained in sections 4 (i), 301, 303 (c), (d), (f), and (r) and 307 (b) of the Communications Act of 1934, as amended.

7. Any interested party who is of the opinion that the amendment proposed by petitioner should not be adopted or should not be adopted in the form set forth herein may file with the Commission on or before April 21, 1954 a written statement or brief setting forth his comments. Comments in support of the proposed amendment may also be filed on or before the same date. Comments or briefs in reply to the original comments may be filed within 10 days from the last day for filing said original comments or briefs. No additional comments may be filed unless (1) specifically requested by the Commission or (2) good cause for the filing of such additional comments is established. The Commission will consider all such comments that are submitted before taking action in this matter, and if any comments appear to warrant the holding of a hearing or oral argument, notice of the time and place of such hearing or oral argument will be given.

8. In accordance with the provisions of § 1.764 of the Commission's rules and regulations, an original and 14 copies of all statements, briefs, or comments shall be furnished the Commission.

Adopted: March 17, 1954.

Released: March 19, 1954.

FEDERAL COMMUNICATIONS COMMISSION,[1]

[SEAL] MARY JANE MORRIS, *Secretary.*

[F. R. Doc. 54-2071; Filed, Mar. 23, 1954; 8:49 a. m.]

[47 CFR Part 8]

[Docket No. 10961]

STATIONS ON SHIPBOARD IN MARITIME SERVICES

FREQUENCY TOLERANCES FOR SHIP STATIONS OPERATING ON FREQUENCIES BELOW 25 MC

1. Notice is hereby given of proposed rule making in the above-entitled matter. The amendments proposed to be adopted are set forth below.

2. The Commission has received a number of inquiries regarding the effective date of the new frequency tolerances set forth in Part 8 of the Commission's rules for ship station transmitters operating on frequencies below 25 Mc. It is believed to be desirable, therefore, to amend the Commission's rules so as to specify more clearly an effective date for the application of the new frequency tolerances. On the basis of information at hand, it appears to be feasible to specify a date of January 1, 1955 after which all ship station transmitters operating on frequencies between 1.6 and 25 Mc must meet the new frequency tolerances. It is also proposed to amend the rules to show more clearly the frequency tolerances applicable to ship station transmitters operating on frequencies from 100 to 515 kc.

3. The proposed amendment is issued under the authority contained in sections 303 (e), (f) and (r) of the Communications Act of 1934, as amended.

4. Any interested party who is of the opinion that the proposed amendment should not be adopted or should not be adopted in the form set forth herein, may file with the Commission on or before April 26, a written statement or brief setting forth his comments. Replies to such comments may be filed within ten days from the last day for filing original comments. Interested persons supporting the proposed amendment may file statements or briefs in a similar manner. The Commission will consider all comments and briefs presented to it before taking final action in this matter.

5. In accordance with the provisions of § 1.764 of the Commission's rules, an original and 14 copies of all statements, briefs or comments should be furnished the Commission.

Adopted: March 17, 1954.

Released: March 19, 1954.

FEDERAL COMMUNICATIONS COMMISSION,

[SEAL] MARY JANE MORRIS, *Secretary.*

1. Section 8.131 (b) is amended to read as follows:

(b) Authorized frequency tolerances for ship stations operating on frequencies below 515 kc or within the frequency-band 1600 kc to 25000 kc.

Frequency ranges	Applicable until Jan. 1, 1955, to transmitters installed before Jan. 1, 1953	Applicable to transmitters installed after Jan. 1, 1953 and to all transmitters after Jan. 1, 1955
	Percent	*Percent*
(1) From 100 to 515 kc. (except for emergency transmitters of the class specified in (2) and (3) below)	0.1	0.1
(2) From 100 to 515 kc.; emergency transmitters only, whose use is confined solely to safety communication as defined in section 8.6 (a)	.3	.3
(3) 500 kc. transmitters intended for use solely in lifeboats or other survival craft	.5	.5
(4) From 1600 to 3500 kc. inclusive (except for lifeboat transmitters under the condition specified below in (5))	.04	.02
(5) For emergency transmitters intended for use solely in lifeboats or other survival craft to be used on the telephone distress frequency 2182 kc. or on the telegraph calling frequency 2091 kc.	.05	.05
(6) Stations when using frequencies within the band 4000 to 25000 kc. other than those specified in (7) below	.02	
(7) Stations (including lifeboat transmitters) when using frequencies within the following bands:		
From 4115 to 4165 kc. inclusive	.05	
From 6200 to 6250 kc. inclusive	.05	
From 8230 to 8330 kc. inclusive	.05	
From 12340 to 12500 kc. inclusive (except 12440 and 12460 kc.)	.05	
12440 and 12460 kc.	.02	
From 16400 to 16700 kc. inclusive (except 16530, 16575, and 16590 kc.)	.05	
16530 and 16590 kc.	.025	
16575 kc.	.02	
22000 to 22200 kc.	.05	
(8) Stations when using frequencies within the band 4000 to 25000 kc.:		
For telephony		.005
For other than telephony		.02

2. Section 8.552 (b) is amended by inserting the word "percent" under the heading "Frequency tolerance" in column two of the "Tabulation of basic technical requirements". In the same column, delete the entry opposite the operating carrier frequency 500 kc and enter the figure "0.1".

3. Section 8.553 (b) is amended by inserting the word "percent" under the heading "Frequency tolerance" in column two of the "Tabulation of basic technical requirements". In the same column, delete the entry opposite the operating carrier frequency 500 kc and enter the following: "0.1 percent except for emergency transmitters whose use is confined solely to safety communication as defined in § 8.6 (a). Such transmitters shall maintain a frequency tolerance of 0.3 percent."

[F. R. Doc. 54-2073; Filed, Mar. 23, 1954; 8:50 a. m.]

[47 CFR Part 8]

[Docket No. 10963]

STATIONS ON SHIPBOARD IN MARITIME SERVICES

CERTIFICATION OF HARMONIC SUPPRESSION CAPABILITIES OF SHIP TRANSMITTERS OPERATING ON 2738 KC

Notice is hereby given of proposed rulemaking in the above-entitled matter.

On December 21, 1953, the Commission issued a public notice which stated that extensive harmful interference was being caused to operations on the aeronautical mobile frequency 5476.5 kc by the radiation of second harmonics from the transmitters of ship stations operating on the frequency 2738 kc. In that notice, the Commission urged ship owners and ship station licensees to take immediate steps to ensure that their equipment was capable of operating without radiation of harmful spurious emissions. Despite

[1] Dissenting statement of Commissioner Hennock filed as part of original document.

this public notice and the initiation of a more vigorous enforcement program, there has been no substantial decrease in the radiation of harmful spurious emissions from ship transmitters operating on 2738 kc. Substantial reduction of such spurious emissions is a matter of urgent necessity in view of the hazard thereby created to aeronautical use of the frequency 5476.5 kc and because of the obstacle thereby created to timely fulfillment by the United States of its international obligations under the agreement entered into by the United States at the Extraordinary Administrative Radio Conference (Geneva, 1951).

In view of the above facts, the Commission is proposing to amend Part 8 of its rules so as to provide that the frequency 2738 kc will not be available for use by ship stations after June 1, 1954, unless an appropriate certificate is filed with the Commission attesting to the elimination or absence of second harmonic radiation capable of causing harmful interference to the operations on 5476.5 kc. In the event these proposed rules are made final as proposed, the Commission plans to initiate immediate action beginning June 1, 1954, to modify the licenses of specific stations found not operating in compliance with the rules so as to delete the authority to operate on the frequency 2738 kc.

Authority for these amendments is contained in the provisions of sections 303 (e), (f) and (r) of the Communications Act of 1934, as amended.

Any interested party who is of the opinion that the proposed amendment should not be adopted, or should not be adopted in the manner proposed, may file with the Commission on or before April 15, 1954, a statement or brief setting forth his comments. At the same time any person who favors the proposed rules may file a brief or statement in support of the proposal. The Commission will consider all comments, briefs and statements which are filed before taking final action.

In accordance with § 1.784 of the Commission's rules, an original and 14 copies of all comments, briefs and statements shall be furnished the Commission.

Adopted: March 17, 1954.

Released: March 18, 1954.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

a. Section 8.351 (d) is amended by inserting a new text in subparagraph (1) to read as follows:

(1) On and after June 1, 1954, the frequency 2738 kc may not be used or assigned unless there has been submitted to the Commission's office at Washington, D. C., by the licensee or the applicant for such assignment, a certification in accordance with the requirements of subparagraph (2) of this paragraph.

b. Section 8.351 (d) is further amended by redesignating subparagraph (2) as subparagraph (3) and adding a new subparagraph (2) to read as follows:

(2) The certification required by subparagraph (1) of this paragraph shall be signed by a person holding at least a second class radiotelephone operator license and shall show the number of such license and the class. It shall state that by reason of tests or measurements of the transmitter therein described and performed by the certifier or under his supervision, he has determined:

(i) That the level of any emission appearing on the second harmonic frequency of the carrier frequency 2738 kc is attenuated below the level of the unmodulated carrier on the frequency 2738 kc by not less than the amount shown in the following table:

Maximum authorized transmitter-power as specifically defined in § 8.7 (ii):	*Attenuation (decibels)*
3 watts or less	40
Over 3 watts up to and including 150 watts	60
Over 150 watts up to and including 600 watts	70
Over 600 watts	80

and

(ii) That the transmitter meets the foregoing requirements without modification or in the event that modification of the transmitter was found to be necessary, a specific description of such modification, including a description of any wave trap or device which was utilized.

[F. R. Doc. 54-2074; Filed, Mar. 23, 1954; 8:50 a. m.]

[47 CFR Part 8]

[Docket No. 10359]

STATIONS ON SHIPBOARD IN MARITIME SERVICES

EMERGENCY ANTENNA ON SHIPS SUBJECT TO SAFETY OF LIFE AT SEA CONVENTION

In the matter of amendment of Subpart U of Part 8 of the Commission's rules regarding the requirement for an emergency antenna on ships subject to the Safety of Life at Sea Convention, London, 1948.

1. These proceedings were instituted by a notice of proposed rule making issued by the Commission on December 29, 1952. An amendment of § 8.704 of the Commission's rules was proposed in order to reflect the requirements of the new Safety Convention with respect to the installation of emergency or spare antennas. The amendment to § 8.704 as then proposed read as follows:

§ 8.704 *Emergency antenna.* (a) After May 1, 1953, a cargo ship shall be provided with an emergency antenna meeting the requirements of § 8.504 (a) (2) unless it is shown that under the circumstances of a particular ship the installation of such an antenna is impracticable or unreasonable, but in such case the ship shall be provided with a spare antenna consisting of a single wire transmitting antenna (including suitable insulators), of the same linear dimensions as the main transmitting antenna completely assembled for immediate replacement.

(b) Until May 1, 1953, cargo ship shall be provided with either an emergency antenna or a spare antenna meeting the respective applicable requirements set forth in paragraph (a) of this section.

2. The period during which comments on this proposal could be filed has expired. Comments were received from the American Merchant Marine Institute, Inc. (formerly the National Federation of American Shipping) and the Sabine Transportation Company, both in opposition to the rule as proposed.

3. The comments received from both of the above-named organizations purported to show (a) that there is lack of justification from a safety standpoint for the requirement of an emergency antenna and (b) that there would be substantial difficulties involved in the installation and maintenance of an efficient emergency antenna on many cargo ships. In effect, the comments sought to categorize the various classes of difficulties which would make the installation of an emergency antenna "impracticable or unreasonable" and then suggested that the rule should provide for exception by reference to specific classes of vessels or to various classes of difficulties.

4. In connection with the comments relating to the lack of justification for the requirement of an emergency antenna, it is pointed out that the Safety of Life at Sea Convention regulation upon which the proposed rule was based reads as follows:

> A main and an emergency aerial shall be provided and installed, provided the Administration may except any ship from the provisions of an emergency aerial if it is satisfied that the fitting of such an aerial is impracticable or unreasonable, but in such case a spare aerial completely assembled for immediate replacement shall be carried.

5. The Commission is of the opinion that this regulation fully justifies the emergency antenna as a safety device and establishes a general preference for safety purposes of the emergency antenna over the spare antenna.

6. AMMI's objections, however, were not solely related to justification of the antenna as a safety device, and in this regard, the comments are summarized to a large extent in that portion quoted below:

> Industry experience during the war years indicates that the emergency antenna is a bothersome device which interferes with cargo handling gear to the extent that it must be taken down during the loading and unloading operations of many types of vessels. It also prevents the most efficient location of the main antenna installation on certain other vessels, and in some cases conditions are so severe as to raise serious questions as to acceptable efficiency of the emergency antenna itself. Further on certain other vessels additional structures and masts are required. Such additional structures as were on the vessels during war years have in many cases been removed for peacetime operation. These would have to be replaced.

AMMI recommended a method of providing exception of cargo ships from the emergency antenna requirement by which approximately 780 vessels, including bulk carriers, and specified Maritime Administration types such as Liberty, C1, C2, T-2 and Liberty tankers, would

be excepted. Any of the balance of the ships would be excepted if the fitting of the emergency antenna would result in one or more of the following conditions:

(a) A less efficient main antenna installation;

(b) The necessity of lowering the emergency antenna to handle cargo;

(c) The necessity to provide extensive new mast or rigging structures;

(d) An antenna arrangement obviously inefficient for emergency purposes.

It appears that under AMMI's proposal only a small minority of miscellaneous cargo vessels would be compelled to carry emergency antennas.

7. The naming of basic Maritime Administration types of cargo ships such as mentioned above does not appear to be appropriate for the purpose of establishing exception from the emergency antenna requirement because of structural variations within each type which may affect the practicability of installing an emergency antenna. Furthermore, modifications of a specified type of vessel after a vessel is placed in service may affect the practicability of installing an emergency antenna.

8. With respect to the proposal of AMMI for determining exception of the balance of the ships, it is apparent that the procedure would necessitate determination and application of the emergency antenna requirement on a ship-by-ship basis. In view of the comments showing the various circumstances and the number of considerations involved in the case of each ship, it is believed this method of administering the emergency antenna requirement would be unreasonably burdensome to both the shipping industry and the Commission.

9. It appears that the basic difficulty with application of the emergency antenna requirement stems from the fact that the original design of existing cargo vessels did not anticipate mast structures for emergency antennas. The Commission believes, however, that if the original designs of the vessel had contemplated such antenna installations, emergency antennas could be installed in a manner that would result in a minimum of interference with operations of the ship while in port. Therefore, in the light of the above considerations, it is proposed to require that only new cargo ships be equipped with an emergency antenna and that existing cargo ships be equipped with either a spare antenna or an emergency antenna. To accomplish this proposal § 8.704 would be modified as indicated below:

§ 8.704 *Emergency antenna.* A cargo ship, the keel of which is laid on or after June 1, 1954, shall be provided with an emergency antenna meeting the requirements of § 8.504 (a) (2). A cargo ship, the keel of which is laid prior to June 1, 1954, shall be provided with either an emergency antenna meeting the requirements of § 8.504 (a) (2) or with a spare antenna consisting of a single wire transmitting antenna (including suitable insulators) of the same linear dimensions as the main transmitting antenna, completely assembled for immediate replacement.

10. The proposed amendment to the rules is issued under authority of section 303 (r) of the Communications Act of 1934, as amended, and Chapter IV, Regulation 10 of the International Convention for the Safety of Life at Sea, 1948.

11. Any interested person who is of the opinion that the proposed amendment should not be adopted may file with the Commission on or before April 26, 1954, a written statement or brief setting forth his comments. Persons desiring to support the amendment may also file comments by the same date. Replies to such comments may be filed within ten days from the last day for filing original comments. The Commission will consider all comments and briefs before taking final action with respect to the proposed amendment.

12. Fifteen copies of each brief or written statement should be filed as required by § 1.764 of the Commission's rules and regulations.

Adopted: March 17, 1954.

Released: March 19, 1954.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 54-2072; Filed, Mar. 23, 1954; 8:50 a. m.]

NOTICES

FEDERAL COMMUNICATIONS COMMISSION

[Docket Nos. 10928, 10929]

NEWS-JOURNAL CORP. AND TELRAD, INC.

ORDER CONTINUING HEARING

In re applications of News-Journal Corporation, Daytona Beach, Florida, Docket No. 10928, File No. BPCT-1218; Telrad, Inc., Daytona Beach, Florida, Docket No. 10929, File No. BPCT-1219; for construction permits for new television stations.

On oral motion of the parties: *It is ordered*, This 17th day of March 1954, that the hearing in the above-entitled proceeding now scheduled for March 26, 1954, is continued to April 2, 1954, in Washington, D. C.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 54-2065; Filed, Mar. 23, 1954; 8:48 a. m.]

[Docket No. 10957]

CHECKER CAB & BAGGAGE CO.

ORDER TO SHOW CAUSE

In the matter of Checker Cab & Baggage Company, Houston, Texas; order to show cause why the license for Radiotelephone Station KKB-843 should not be revoked; Docket No. 10957.

There being under consideration the matter of certain alleged violations of the Commission's rules in connection with the operation of Station KKB-843, licensed to Checker Cab & Baggage Company of Houston, Texas;

It appearing, that notice of violations of the Commission's rules in connection with the operation of the station was given the licensee as follows: Notice dated January 25, 1954, specifying that an inspection of the station on January 18, 1954, indicated noncompliance with §§ 16.403 and 16.160 (a) and (b) in that the supervisor's car (#104) did not bear the name of the cab company and an appropriate number in the same type of printing as used on the cabs and the station records did not contain the required information concerning technical measurements and maintenance of the equipment.

It further appearing, that, despite further notice calling attention to the foregoing notice of violations and the failure to reply thereto in accordance with § 16.159 of the Commission's rules, no explanation or other response has been received from the licensee;

It is ordered, This 17th day of March 1954, pursuant to the provisions of section 312 (c) of the Communications Act of 1934, as amended, that the said Checker Cab & Baggage Company of Houston, Texas, show cause why the aforementioned license should not be revoked and appear and give evidence in respect thereto at a hearing [1] to be held before this Commission at Washington, D. C., on the 17th day of May 1954;

It is further ordered, That the Secretary send a copy of this order by Registered Mail—Return Receipt Requested to

[1] Section 1.402 of the Commission's rules provides that in order to have the opportunity to appear before the Commission at the time and place specified in the order to show cause, the licensee shall within thirty (30) days from the date of the receipt of this order submit a written statement informing the Commission whether said licensee will appear at this hearing and present evidence upon the matter specified, or whether the rights to such a hearing are waived. Waiver of the hearing may be accompanied by a statement setting forth the reasons why the licensee believes that an order of revocation should not be issued. A waiver unaccompanied by such a statement will be deemed to be an admission of the allegations specified in the order to show cause. Failure to respond to this order within the above-mentioned thirty (30) day period or failure to appear at the hearing will be deemed to be a waiver of the right to a hearing and an admission of the allegations specified in the order to show cause.

the said Checker Cab and Baggage Company, P. O. Box 18104, Houston, Texas.

Released: March 19, 1954.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 54-2066; Filed, Mar. 23, 1954; 8:48 a. m.]

[Docket No. 10958]

YELLOW CAB & TRANSFER CORP.

ORDER TO SHOW CAUSE

In the matter of Yellow Cab & Transfer Corporation, Houston, Texas, order to show cause why the license for Radiotelephone Station KKA 981 should not be revoked; Docket No. 10958.

There being under consideration the matter of certain alleged violations of the Commission's rules in connection with the operation of Station KKA 981 licensed to Yellow Cab & Transfer Corporation of Houston, Texas.

It appearing, that notice of violation of the Commission's rules in connection with the operation of the station was given the licensee as follows: Notice dated January 25, 1954, specifying that an inspection of the station on January 18, 1954, indicated noncompliance with § 16.160 (a) and (b) in that the station records did not contain the required information concerning technical measurements and maintenance of the equipment;

It further appearing, that, despite further notice calling attention to the foregoing notice of violations and the failure to reply thereto in accordance with § 16.159 of the Commission's rules, no explanation or other response has been received from the licensee:

It is ordered, This 17th day of March 1954, pursuant to the provisions of section 312 (c) of the Communications Act of 1934, as amended, that the said Yellow Cab & Transfer Corporation of Houston, Texas, show cause why the aforementioned license should not be revoked and appear and give evidence in respect thereto at a hearing [1] to be held before this Commission at Washington, D. C., on the 17th day of May 1954;

It is further ordered, That the Secretary send a copy of this order by registered Mail—Return Receipt Requested to the said Yellow Cab & Transfer Corporation, P. O. Box 18104, Houston, Texas.

Released: March 19, 1954.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 54-2067; Filed, Mar. 23, 1954; 8:48 a. m.]

[1] Section 1.402 of the Commission's rules provides that in order to have this opportunity to appear before the Commission at the time and place specified in the order to show cause, the licensee shall within thirty (30) days from the date of the receipt of this order submit a written statement informing the Commission whether said licensee will appear at this hearing and present evidence upon the matter specified, or whether the rights to such a hearing are waived. Waiver of the hearing may be accompanied by a statement setting forth the reasons why the licensee believes that an order of revocation should not be issued. A waiver unaccompanied by such a statement will be deemed to be an admission of the allegations specified in the order to show cause. Failure to respond to this order within the abovementioned thirty (30) day period of failure to appear at the hearing will be deemed to be a waiver of the right to a hearing and an admission of the allegations specified in the order to show cause.

[Docket No. 10960]

LAKE SHORE BROADCASTING CO., INC.

ORDER DESIGNATING APPLICATION FOR HEARING ON STATED ISSUES

In re application of Lake Shore Broadcasting Co., Inc., Sheboygan, Wisconsin, Docket No. 10960, File No. BP-8808; for construction permit.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 17th day of March 1954;

The Commission having under consideration two pleadings, one entitled "Petition Protesting Grant" filed on March 5, 1954, pursuant to section 309 (c) of the Communications Act, by Columbia Broadcasting System, Inc., licensee of Station WBBM, Chicago, Illinois (780 kc, 50 kw, U.), and the other entitled "Petition for Reconsideration and Designation for Hearing" filed on March 5, 1954, pursuant to section 405 of the Communications Act, by Radio Station WAIT, licensee of Station WAIT, Chicago, Illinois (820 kc, 5 kw, specified hours) each requesting the Commission to reconsider its action of February 3, 1954, in granting the above-entitled application of Lake Shore Broadcasting Co. for construction permit for a new station at Sheboygan, Wisconsin to operate on 800 kilocycles; 250 watts, daytime only and to designate the application for hearing with the petitioners made parties thereto;

It appearing, that the Commission's further study of the matter, including an analysis of the engineering affidavits and supporting field intensity measurements submitted with the WBBM and WAIT pleadings, indicates that the proposed Sheboygan operation will cause objectionable interference to Stations WBBM and WAIT and that the 25 mv/m contour of the proposed Sheboygan operation and the 2 mv/m contour of Station WBBM will overlap—a condition expressly prohibited by the Commission's Standards of Good Engineering Practice for stations proposing to operate with a frequency separation of 20 kilocycles; and

It further appearing, that the Commission is of the opinion that the aforesaid protest of Columbia Broadcasting System, Inc., meets the requirements of section 309 (c) and that a hearing must be held on the above-entitled Sheboygan, Wisconsin application;

It is ordered, That pursuant to sections 309 (c) and 405 of the Communications Act of 1934, as amended, the above-entitled application of Lake Shore Broadcasting Co. is designated for hearing at the offices of the Commission in Washington, D. C., on May 4, 1954, at 10:00 a. m. upon the issues specified in WBBM's protest which issues are specifically adopted by the Commission and read as follows:

1. To determine whether the installation and operation of the proposed station would be in compliance with the Commission's rules and Standards of Good Engineering Practice Concerning Standard Broadcast Stations with particular reference to the possibility of overlap between the 25 mv/m contour of the proposed station and the 2 mv/m contour of Station WBBM, Chicago, Illinois.

2. To determine whether the operation of the proposed station at Sheboygan, Wisconsin, would involve objectionable interference with Stations WBBM and WAIT, Chicago, Illinois, and, if so, the nature and extent thereof, the areas and populations affected thereby, and the availability of other primary services to such areas and populations.

3. To determine the areas and populations which may be expected to gain or lose primary service from the operation of the proposed station and the availability of other primary service to such areas and populations.

4. To determine on the basis of the above issues whether a grant of the above-entitled application (File No. BP-8808) would serve the public interest, convenience and necessity.

It is further ordered, That the burden of proceeding with the introduction of evidence and the burden of proof is placed upon Lake Shore Broadcasting Co.;

It is further ordered, That Gene T. Dyer, Evelyn M. Dyer, Adele Moulds, Louise E. Moulds, and Grace V. McNeill d/b as Radio Station WAIT, licensee of Station WAIT, Chicago, Illinois, and Columbia Broadcasting System, Inc., licensee of Station WBBM, Chicago, Illinois, are made parties to the proceeding;

It is further ordered, That the above-described pleadings of Radio Station WAIT and Columbia Broadcasting System, Inc., are granted;

It is further ordered, That the effective date of the Commission's action of February 3, 1954, in granting the above-entitled application of Lake Shore Broadcasting Co. is stayed pending the conclusion of the aforementioned hearing.

Released: March 19, 1954.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 54-2069; Filed, Mar. 23, 1954; 8:49 a. m.]

FEDERAL POWER COMMISSION

[Docket Nos. G-2318, G-2320]

LATERAL GAS PIPELINE CO. AND IOWA ELECTRIC LIGHT AND POWER CO.

ORDER CONSOLIDATING PROCEEDINGS, DENYING REQUESTS FOR SHORTENED PROCEDURE AND FIXING DATE OF HEARING

In the matters of Lateral Gas Pipeline Company, Docket No. G-2318; Iowa Electric Light and Power Company, Docket No. G-2320.

Lateral Gas Pipeline Company (Lateral), an Iowa corporation with its principal place of business in Cedar Rapids, Iowa, filed in Docket No. G-2318, on November 24, 1953, an application for a certificate of public convenience and necessity, pursuant to section 7 of the Natural Gas Act, authorizing the construction and operation of transmission pipe-line facilities to transport natural gas for Iowa Electric Light and Power Company (Iowa Electric) for ultimate distribution in the Towns of Villisca and Clarinda, Iowa.

Iowa Electric Light and Power Company, an Iowa corporation having its principal place of business in Cedar Rapids, Iowa, filed in Docket No. G-2320 on November 25, 1953, an application, pursuant to section 7 (a) of the Natural Gas Act, for an order directing Natural Gas Pipeline Company of America to sell 1,737 Mcf of natural gas per day to Iowa Electric for resale and distribution by Iowa Electric Company in the communities above referred to.

Due notice of the filing of said application has been given, including publication in the FEDERAL REGISTER on December 30, 1953 (Docket Nos. G-2318 and G-2320) (18 F. R. 8880).

Applicants have requested that their respective applications be heard under the shortened procedure provided by § 1.32 (b) of the Commission's rules of practice and procedure (18 CFR 1.32 (b)) for non-contested proceedings.

The Commission finds:

(1) It is appropriate for carrying out the provisions of the Natural Gas Act and good cause exists for consolidating the proceedings at Docket Nos. G-2318 and G-2320 for the purpose of hearing.

(2) Good cause has not been shown for granting Applicants' requests that their respective applications, filed at Docket Nos. G-2318 and G-2320, be heard under the shortened procedure as provided by the Commission's rules of practice and procedure, and requests therefor should be denied as hereinafter ordered.

The Commission orders:

(A) The proceedings in Docket Nos. G-2318 and G-2320 be and the same hereby are consolidated for the purpose of hearing.

(B) The requests of Lateral Gas Pipeline Company at Docket No. G-2318, and Iowa Electric Light and Power Company at Docket No. G-2320, that the applications filed therein be heard under the provisions of § 1.32 (b) (18 CFR 1.32 (b)) of the Commission's rules of practice and procedure, be and the same hereby are denied.

(C) Pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7, 15 and 16 of the Natural Gas Act, and the Commission's rules of practice and procedure, a public hearing be held commencing on April 14, 1954, at 10:00 a. m., e. s. t., in the Hearing Room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by applications, and supplements thereto.

(D) Interested State commissions may participate as provided by §§ 1.8 and 1.37 (f) (18 CFR 1.8 and 1.37 (f)).

Adopted: March 17, 1954.

Issued: March 17, 1954.

By the Commission.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 54-2050; Filed, Mar. 23, 1954; 8:45 a. m.]

[Docket No. G-2354]

TEXAS ILLINOIS NATURAL GAS PIPELINE CO.

ORDER FIXING DATE OF HEARING

The applicant in this proceeding has requested that its application for a certificate of public convenience and necessity to increase deliveries of certain daily contract quantities of natural gas to the City of Sullivan, Illinois, and to abandon service by decreasing deliveries of daily contract quantities of natural gas to Southeastern Illinois Gas Company, be heard under the shortened procedure provided by § 1.32 (b) (18 CFR 1.32 (b)) of the Commission's rules of practice and procedure. The application was filed January 14, 1954, pursuant to section 7 of the Natural Gas Act. No request to be heard, protest or petition has been filed subsequent to the giving of due notice of the filing of the application including publication in the FEDERAL REGISTER on February 5, 1954 (19 F. R. 717). This proceeding is, therefore, a proper one for disposition under the provisions of the aforesaid rule for non-contested proceedings.

The Commission orders:

(A) Pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing be held on April 5, 1954 at 9:30 a. m., e. s. t., in a hearing room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by the application: *Provided, however,* That the Commission may, after a noncontested hearing, forthwith dispose of the proceedings pursuant to the provisions of § 1.32 (b) of the Commission's rules of practice and procedure.

(B) Interested State commissions may participate as provided by §§ 1.8 and 1.37 (f) (18 CFR 1.8 and 1.37 (f)) of the said rules of practice and procedure.

Adopted: March 17, 1954.

Issued: March 17, 1954.

By the Commission.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 54-2051; Filed, Mar. 23, 1954; 8:45 a. m.]

[Project No. 2151]

PUBLIC UTILITY DISTRICT NO. 1 OF CHELAN COUNTY, WASHINGTON

NOTICE OF APPLICATION FOR PRELIMINARY PERMIT

MARCH 18, 1954.

Public notice is hereby given that Public Utility District No. 1, of Chelan County, Wenatchee, Washington, has filed application under the Federal Power Act (16 U. S. C. 791a-825r) for preliminary permit for proposed Project No. 2151 to be located on the Chiwawa and Wenatchee Rivers in the region of the city of Leavenworth near Lake Wenatchee in Chelan County, Washington and affecting lands of the United States located in the Wenatchee National Forest. The proposed project would consist of: (1) A rockfill dam in Chiwawa River, in Sec. 34, T. 28 N., R. 17 E., creating a reservoir with about 350,000 acre-feet of useful storage, and a power plant at the damsite with 10,000 kw of installed capacity; (2) a regulating dam at outlet of Lake Wenatchee for maintaining the lake during the entire summer recreational season at its maximum experienced high level and providing for use during the remainder of the year of approximately 24,800 acre-feet of storage with 10 feet of drawdown; (3) a dam in Wenatchee River upstream from the confluence of Chiwaukum Creek, creating Tumwater Reservoir with water surface at about elevation 1750 feet, a tunnel and penstock extending approximately six miles to a power plant with 135,000 kw of installed capacity near city of Leavenworth, on the Wenatchee River. The power generated would be fed into applicant's transmission and distribution system to serve retail and wholesale loads of the applicant including municipalities and public agencies.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with rules of practice and procedure of the Commission (18 CFR 1.8 or 1.10) on or before April 27, 1954. The application is on file with the Commission for public inspection.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 54-2062; Filed, Mar. 23, 1954; 8:47 a. m.]

GENERAL SERVICES ADMINISTRATION

SECRETARY OF HEALTH, EDUCATION, AND WELFARE

DELEGATION OF AUTHORITY TO NEGOTIATE CERTAIN CONTRACTS RELATING TO CONDUCT OF PHYSICAL EXAMINATIONS UNDER REFUGEE RELIEF ACT OF 1953

1. Pursuant to the authority vested in me by the Federal Property and Administrative Services Act of 1949, 63 Stat. 377, as amended, herein called the act, authority is hereby delegated to the Secretary of Health, Education, and Welfare to negotiate, without advertising, under section 302 (c) (6), (7), and (9) of the act, purchases and contracts for supplies and services required in connection with the conduct of physical examinations under the provisions of the Refugee Relief Act of 1953, 67 Stat. 400; 50 U. S. C. App. 1971–1971q.

2. This authority shall be exercised in accordance with applicable limitations and requirements of the act, particularly sections 304 and 307, and in accordance with applicable policies, procedures and controls prescribed by the General Services Administration.

3. The authority herein delegated may be redelegated to any officer, official or employee of the Department of Health, Education, and Welfare.

4. This delegation shall be effective as of the date hereof.

Dated: March 19, 1954.

EDMUND F. MANSURE,
Administrator.

[F. R. Doc. 54–2103; Filed, Mar. 22, 1954; 3:57 p. m.]

DIRECTOR OF THE UNITED STATES INFORMATION AGENCY

DELEGATION OF AUTHORITY TO NEGOTIATE A CONTRACT FOR ARCHITECT-ENGINEER SERVICES

1. Pursuant to the authority vested in me by the Federal Property and Administrative Services Act of 1949, 63 Stat. 377, as amended, herein called the act, authority is hereby delegated to the Director of the United States Information Agency, to negotiate, without advertising, under section 302 (c) (4) of the act, a contract for architect-engineer services relating to the construction of studios for the International Broadcast Service.

2. This authority shall be exercised in accordance with the applicable limitations and requirements in the act, particularly sections 304 and 307, and in accordance with policies, procedures and controls prescribed by the General Services Administration.

3. The authority herein delegated may be redelegated to any officer or employee of the United States Information Agency.

4. This delegation shall be effective as of the date hereof.

Dated: March 19, 1954.

EDMUND F. MANSURE,
Administrator.

[F. R. Doc. 54–2099; Filed, Mar. 22, 1954; 4:08 p. m.]

SECURITIES AND EXCHANGE COMMISSION

[File No. 68–163]

INTERNATIONAL HYDRO-ELECTRIC SYSTEM

ORDER GRANTING APPLICATION, AND PERMITTING DECLARATION AS TO SOLICITATION IN CONNECTION WITH ELECTION OF DIRECTORS TO BECOME EFFECTIVE

MARCH 17, 1954.

Christian A. Johnson and Alfred A. Romney ("declarants"), Class A stockholders of International Hydro-Electric System, a registered holding company undergoing reorganization pursuant to section 11 (d) of the Public Utility Holding Company Act of 1935 ("act") and now in process of electing a new board of directors, having filed with the Commission a declaration and amendments thereto relating to their solicitation of the Class A stockholders in connection with such election, pursuant to Rule U-62 promulgated under the act, and having at the same time filed an application pursuant to Rule U-100 requesting exemption from paragraph (g) of Rule U-62 and qualified exemption with respect to Items (4) and (8) of Form U-R–1 thereunder, and requesting acceleration of the effective date of their declaration pursuant to Rule U-62 (d); and

It appearing to the Commission that, in view of the nature of the said election and in view of the character and purpose of the solicitation proposed, the conditions imposed in Rule U-62 (g) against trading and giving investment advice are inapplicable and inappropriate; also that the information which declarants have given in Item (4) of Form U-R–1 with respect to their ownership of system securities is sufficiently informative; that the first letter of solicitation to be used by the declarants, a copy of which is annexed to their declaration, satisfies in all essential respects the applicable requirements in Item (8) of said form, and that said first letter likewise substantially satisfies the relevant requirements of Schedule 14A of the regulations under the Securities Exchange Act of 1934 as amended, which provisions normally govern the solicitation of proxies for the election of corporate directors; and

It further appearing to the Commission that it is appropriate to grant declarants' request that the effective date of their declaration be accelerated, pursuant to Rule U-62 (d), and that said declaration become effective forthwith:

It is therefore ordered, That the application filed by declarants seeking exemption pursuant to Rule U-100 from paragraph (g) of Rule U-62 and seeking qualified exemption with respect to Items (4) and (8) of Form U-R–1 thereunder, be and the same hereby is granted;

It is further ordered, That the declaration filed by the declarants pursuant to Rule U-62, with modifications as hereinabove approved, be and is hereby made effective forthwith.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F. R. Doc. 54–2053; Filed, Mar. 23, 1954; 8:46 a. m.]

[File No. 70–3221]

NORTHERN STATES POWER CO. (MINNESOTA AND WISCONSIN)

NOTICE OF FILING REGARDING ISSUANCE AND SALE OF COMMON AND PREFERRED STOCK BY REGISTERED HOLDING COMPANY AND ISSUANCE AND SALE OF COMMON STOCK OF SUBSIDIARY TO PARENT

MARCH 22, 1954.

In the matter of Northern States Power Company (a Minnesota Corporation), Northern States Power Company (a Wisconsin Corporation); File No. 70–3221.

Notice is hereby given that Northern States Power Company, a Minnesota Corporation ("Minnesota"), a registered holding company and a public-utility company, and its public-utility subsidiary, Northern States Power Company, a Wisconsin Corporation ("Wisconsin"), have filed with this Commission an application-declaration pursuant to the Public Utility Holding Company Act of 1935 ("act"), designating section 6, 7, 9, and 10 of said act and Rules U-23, U-24, U-43, and U-50 promulgated thereunder regarding certain proposed transactions which are summarized as follows:

Minnesota proposes to issue and sell 1,219,856 additional shares of its common stock of the par value of $5 per share and 150,000 shares of a new series of its cumulative preferred stock of the par value of $100 per share.

Wisconsin proposes to issue and sell, and Minnesota proposes to purchase and acquire, during the balance of the year 1954, an aggregate of not to exceed 40,000 shares of the par value of $100 per share of the common stock of Wisconsin at $100 per share.

Minnesota proposes to issue and sell the 1,219,856 shares of its common stock by (a) offering said shares to the holders of its common stock on the basis of one share for each ten shares held and at a subscription price to be determined by Minnesota at a later date, the right to subscribe to be evidenced by subscription warrants; and (b) selling at such subscription price, pursuant to the competitive bidding requirements of Rule U-50, such of the above shares of common stock as are not subscribed for plus any of the outstanding shares of common stock of Minnesota acquired by the Company in connection with stabilization transactions. The application-declara-

tion states that Minnesota may make purchases of not to exceed 60,993 shares (being a number of shares equal to approximately 5 percent of the new shares of common stock to be issued by Minnesota) of its presently outstanding stock in order to facilitate the proposed offering and sale of additional shares of its common stock or to stabilize the market price therefor. It is stated that to avoid the complications and expense of issuing subscription warrants in units involving a fraction of a share, Minnesota proposes, if the number of shares of common stock held of record by any shareholder is not evenly divisible by ten, the warrant such shareholder will receive will entitle him to subscribe for one share in lieu of the fraction of a share to which he would otherwise be entitled.

The additional shares of preferred stock of Minnesota, to be known as Cumulative Preferred Stock, $__ Series, will be sold pursuant to the competitive bidding requirements of Rule U-50, the price (which shall be not more than $102.75 per share nor less than $100 per share) and the annual dividend rate (which shall be a multiple of 4 cents) to be fixed as a result of the bidding.

It is stated that the proceeds of the sale of additional shares of common and preferred stock by Minnesota and the proceeds of the sale of additional shares of common stock by Wisconsin, together with other corporate funds, will be used for the purpose of retiring $20,000,000 of bank loans of Minnesota evidenced by its promissory notes maturing July 15, 1954, and $2,500,000 of bank loans of Wisconsin evidenced by its promissory notes maturing June 9, 1954, and to finance new construction. Minnesota estimates that the expenditures of it and its subsidiaries for construction during 1954 will aggregate approximately $52,350,000.

The application-declaration further states that no State commission, other than the Public Service Commission of North Dakota, or Federal commission, other than this Commission, has jurisdiction over the transaction proposed by Minnesota, and that the issuance and sale of common stock by Wisconsin is subject to the authorization by the Public Service Commission of Wisconsin.

Applicants-declarants request that this Commission's order become effective upon issuance.

Notice is further given that any interested person may, not later than April 1, 1954, at 5:30 p. m., request the Commission in writing that a hearing be held on such matter, stating the nature of his interest, the reasons for such request and the issues of fact or law, if any, raised by said joint application-declaration which he desires to controvert, or may request that he be notified if the Commission should order a hearing thereon. Any such request should be addressed: Secretary, Securities and Exchange Commission, 425 Second Street NW., Washington 25, D. C. At any time after April 1, 1954, at 5:30 p. m., said joint application-declaration, as filed, or as amended hereafter, may be granted and permitted to become effective as provided in Rule U-23 of the rules and regulations under the act, or the Commission may exempt such transactions as provided in Rules U-20 (a) and U-100 thereof.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F. R. Doc. 54-2094; Filed, Mar. 23, 1954; 8:52 a. m.]